

7 Natural Duties and the Duty to Obey the Law

The Basic Argument

The failure of Transactional and Associative theories to explain the source of a general duty to obey domestic law pushes us to explore other possibilities. In particular, since the moral duty to obey seems to many a relatively basic, natural, nonvoluntary feature of social life, it seems initially promising to suppose that the moral principle that accounts for this duty belongs to that group of principles that specifies our natural moral duties. Natural Duty theories of the duty to obey the law, as we have seen, are those that ground our duty to obey not in who we are (as in Associative accounts) or in what we've done or enjoyed (as in Transactional accounts), but rather either (a) in the moral importance of advancing some impartial moral good or (b) in some moral duty thought to be owed by all persons to all others as moral equals, regardless of roles, relationships, or transactions. Thus, the natural duty in question, from which the duty to obey is to be derived, could be a consequentialist moral duty to promote or maximize the occurrence of some good property or state of affairs – such as happiness (utility, preference satisfaction, etc.), moral perfection, or justice. Or the duty could simply be one of that class of moral duties generally thought to be owed by all persons to all other persons just in virtue of their being persons – such as the duties to refrain from violence and deception (e.g., assault, murder, theft, lying) or the duties of justice, charity, mutual aid, or rescue.

I will concentrate most of my attention here on the Natural Duty approaches that are broadly Kantian in character. Within the Natural Duty family, these seem to me to be the most compelling, the most numerous, and the most popular among contemporary philosophers and political and legal theorists. I will also comment very quickly, before beginning my exploration of the Kantian theories, on consequentialist approaches to justifying the duty to obey. These approaches, as we have seen, also count (on my preferred way of dividing theories) as Natural Duty theories, though the difficulties they face are more complicated than those faced by the theories we will consider later, and they can receive here only the briefest consideration.

I begin with what I will call for simplicity “the argument.” It is (intentionally) a very general, imprecise sort of argument, insufficiently developed for careful evaluation and never defended by anyone (that I know of) in quite this form. Indeed, as presented, its premises are far too vague for it to be said even that its conclusion follows from their conjunction. What I intend to do with the argument is only to try to capture, at least in very general terms, the most important elements of all of the prominent members of the Natural Duty family of theories of the duty to obey the law. All of the Natural Duty approaches can, I think, find something in the argument that hits near the spirit of their account.

The Argument

- Premise 1: Government (political society, law) is necessary for human beings.
 (Explanation: Human beings on earth must inevitably interact with one another, the world being spherical and heavily populated. People have a variety of motives and projects that bring them into conflict with one another. Some are naturally aggressive and seek power over others; some interfere with others in competition for scarce resources; some interfere preemptively to better secure their own well-being. Even those guided by exemplary motives frequently disagree about what morality,

right, and justice require and tend to be biased in favor of themselves and those close to them; and these disagreements further set the stage for conflict. Lack of power and neutrality, along with various coordination and assurance problems, prevent persons from solving these problems themselves in a nonpolitical condition. As a result, without coercive law and government (to settle disagreements about what ought to be done, and to deter and control those who would for these [and other] reasons introduce conflict into human affairs), the human condition would inevitably include the constant threat of war and anarchy; consequent great insecurity of person and possessions, in which each person was a threat to every other; regular malicious as well as nonmalicious violations of persons' basic rights – or, perhaps, the absence of real rights altogether; the absence of justice, both procedural and substantive; and disagreement about how we ought to treat one another and when wrong has been done. Human beings thus need government and law.)

- Premise 2: All persons have a natural moral duty to (select one or more of the following):
- a. Maximize goodness in the world (e.g., happiness, preference satisfaction, perfection);
 - b. Perform necessary tasks to which they are well suited, and support and obey those who perform necessary tasks;
 - c. Respect and defer to those who do necessary tasks by occupying positions of authority;
 - d. Do and/or promote justice;
 - e. Assist those in peril.
- Conclusion 1: Therefore all persons have a natural moral duty to:
- a. Leave the state of nature and join together with others to create government and law where none exist, and
 - b. Support and comply with stable existing governments and law when within their jurisdictions (Possible Proviso: provided that government and law are reasonably just).

(Explanation: Conclusion 1 is implied by the duty [or duties] in Premise 2 conjoined with a set of premises detailing the principal enduring facts about the human social condition.)

Conclusion 2: All persons have a moral duty to obey domestic law (again with the Possible Proviso).

(Explanation: Conclusion 2 is implied by the duty in Conclusion 1 conjoined with a set of premises detailing the principal enduring facts about the human social condition.)

Consequentialism

I deal with consequentialism first only because I will say so little here about consequentialist attempts to justify a general moral duty to obey the law. If one of those attempts succeeds, of course, the argument of this essay must fail. But the strengths and weaknesses of consequentialist moral theory are not only ground that has been quite thoroughly traversed, they are properly the subject of a separate book, not of a brief section of a short essay. I try here only to note the basic reasons for my doubts that consequentialism can complete the argument in a fashion that we should find persuasive.

I understand as consequentialist any moral theory that makes the rightness or wrongness of an act depend solely on the goodness or badness of its consequences. Consequentialist theories will then differ according to the different accounts they give of the good, as well as the kinds of consequences (e.g., direct or generalized) they consider. In attempting to justify a general duty of legal obedience, consequentialist arguments will treat the necessity claim (of Premise 1) as a marker or indicator of the likely bad consequences that would result from the absence of government or law. These bad consequences might be sufficient to establish a duty not to try to overthrow an existing (reasonably just) government because of the likelihood of high transitional costs. But consequentialists need to show more than just this. They must next explain how particular acts of ordinary (i.e., nonrevolutionary) legal disobedience can be expected either to have worse direct

consequences than obedience – perhaps by contributing incrementally to the extreme badness of lawlessness – or to be a worse type of action (in the circumstances) than obedience. This seems to me an explanation that cannot be convincingly given. In the following remarks, I will have in mind primarily theories that identify utility (happiness, preference satisfaction) as the good, but the claims made will apply equally to other versions of consequentialism.

Direct consequentialist arguments for legal obedience seem to me to fail today in the same way that they failed when Socrates (perhaps) advanced them: It simply seems empirically false that Socrates' escape would have either (a) had immediate bad consequences that would have outweighed the good of his survival or (b) made an interesting incremental contribution to the longer-term destruction of law and government (by contributing to a general trend of disobedience or by encouraging enough others to follow his disobedient example). More generally, while domestic legal disobedience may often have worse direct consequences than obedience, there is no guarantee that this will be the case, and we are all perfectly acquainted with the many commonplace instances in which it quite plainly is not the case. Significant personal or interpersonal good can often be done at smaller (or negligible) cost by disobeying the law (not only in the silly cases of driving through red lights at midnight in the desert, but in ordinary cases of illegal recreations, tax fraud, theft, and so on). This point is related, of course, to the more general and familiar worry that direct- or act-consequentialist theories cannot justify "secondary" principles of duty beyond the primary duty of good maximization. I have discussed these issues elsewhere¹ and will pursue them further later on as well.

It is perhaps worth noting that, historically, it was for these reasons that the utilitarian William Godwin found himself compelled to embrace a position that we would now call "anarchism." He denied (among other things) the existence of a general moral duty to obey domestic law or support one's domestic legal and

1 *Moral Principles and Political Obligations*, 45–54.

political institutions – no matter how many virtues they might possess – precisely because the (sole) moral duty to promote utility was inconsistent with acknowledging *any* firm secondary duties, legal and political ones included. A utilitarian must follow the demands of utility wherever they lead, even when they lead one away from domestic legal compliance.²

Suppose, however, that we attempt to counter such concerns about direct consequentialism by appealing instead to consequentialist generalization (of the sort that, as we have seen, Socrates may have had in mind). Unhappily for such an attempt, consequentialist generalization arguments are either utterly implausible or simply extensionally equivalent to direct consequentialist arguments.³ Consider the dubious moral force of “what if everyone did that?” arguments.⁴ Everyone’s doing what I am doing right now would be a very bad thing – there would be nobody keeping the ship afloat, as it were. **But it is surely not morally wrong for me to be writing a philosophical essay (or, if it is wrong, it is wrong for other reasons – such as the essay’s being bad or my neglecting my family).** Perhaps the idea is that I have misdescribed what I am doing right now. I am not just writing a philosophical essay, but doing so when others are busy taking care of society’s (other?) necessary tasks. Everyone’s doing *that* would not be bad, hence my doing so now is not wrong. But in

2 “In those measures which have the concurrence of my judgement [with regard to utility], I may reasonably be expected to co-operate with willingness and zeal; but, for the rest, my only justifiable ground of obedience is that I will not disturb the repose of the community, or that I do not perceive the question to be of significant magnitude to authorize me in incurring the penalty” (William Godwin, *Enquiry Concerning Political Justice* [Harmondsworth: Penguin, 1976], 239). See especially II.vi. and III.ii–vi.

3 David Lyons, *Forms and Limits of Utilitarianism* (Oxford: Oxford University Press, 1965).

4 “What if everyone did that?” arguments might sometimes have nonconsequentialist force: They might be used to show that it would be *unfair* for me to do A (pick an apple from someone else’s orchard, water my lawn during a drought, etc.) when everyone else can’t do A (without consequences all would regret). Where such arguments are in fact disguised fairness arguments, they qualify not as Natural Duty arguments, but rather as Transactional arguments.

that case, my disobeying the law right now would not be wrong either, since what I would be more precisely doing is disobeying the law when most others would be obeying it. And if everyone did *that*, the consequences would not be bad. The legal system (in stable societies) needs only *general* compliance to function at peak efficiency, not universal compliance. Such examples can be multiplied endlessly (what if everyone ate lunch at noon, as I am considering doing?). The general point is this: When we adjust our examples so that the consequentialist generalization arguments seem to yield plausible conclusions – by generalizing over more specifically described acts – we simply render the argument equivalent to a direct consequentialist argument, making it vulnerable to precisely the critique that consequentialist generalization was introduced to evade.

Consequentialist theories can, of course, be advanced in more sophisticated “rule-consequentialist” forms, in which they are not in this way either immediately implausible or simply equivalent to direct consequentialist arguments. But such approaches face the equally daunting problem of explaining why they should not be accused of endorsing rule-following in circumstances where it is simply irrational (from a consequentialist viewpoint) to conform one’s conduct to the rule. (This is the well known “rule-worship” objection, which I believe to be conclusive.) These obstacles, along with the difficulties consequentialist theories face on the issue of particularity (discussed later in this chapter), seem to me sufficient to render unconvincing all consequentialist accounts of a duty to obey the law.

Necessity

Necessity accounts of the duty to obey offer a slightly truncated version of the argument, concentrating exclusively on the argument’s necessity claims (in Premise 1) and on the supposedly direct moral implications of such “necessities” (in Premise 2.b). While necessity accounts ultimately go on to draw the same conclusion (about a duty to obey domestic law) as do other Natural Duty theories, their exclusive focus on the moral importance of

need or necessity – and on the moral duties that allegedly follow immediately from claims of need/necessity, rather than on duties that follow from independent, nonnecessity-centered moral principles (such as the others identified in Premise 2) – makes these accounts appear somewhat more blunt and certainly less elaborate than their fellow family members.

The guiding idea of necessity accounts is that certain kinds of needs – in particular, needs for something or someone to be supervised or cared for or controlled – ground moral duties on suitable persons to perform the needed tasks and moral duties on others to permit and facilitate such performances. In the case at issue in this essay, the need for (institutionally acknowledged) political authorities and a stable system of law is said to ground a moral right for some to political and legal authority and a general moral duty of domestic legal compliance. Necessity claims are familiar from many areas of life, particularly in the law. Appeals to necessity in law (and in morals) generally involve using the claim of necessity either as an excuse (meaning that having done what was necessary is seen as simply not blameworthy/punishable⁵) or as a justification (so that in doing what was necessary, we are seen as having done what was actually the best/right thing to do on balance⁶).

Necessity accounts of a duty to obey the law plainly will need to regard necessity as justifying action rather than as merely excusing it. But they will further need to show how necessity claims by some can ground various moral duties on others, duties owed

5 Legal excuses, along with their moral analogues, include such claims as mistake or accident, duress, provocation, immaturity, or insanity. In general, the claim made is that while the action performed was not the best/right action to perform in the circumstances, the harm done was (nonnegligently) unintended or the actor was not in reasonable control of the actions (i.e., *mens rea* was absent). Punishment or blame would therefore be inappropriate.

6 A legal or moral claim of justification is a claim that an action for which one would normally be liable to punishment or blame is not, in the circumstances, one we should condemn at all. The action is, on balance, the best or right action in the circumstances. Thus, homicide, which is normally wrong, may in certain circumstances be justifiable – as when one kills another in self-defense or in defense of others.

to those who perform the necessary tasks. In many familiar cases of doing what is necessary, of course, duty seems not to be a real issue at all. Where I have no (acceptable) choice but to use deadly force in resisting your wrongful attack on me, or where I have no (acceptable) choice after the climbing accident but to cut the rope by which your heavy, unconscious body dangles below me (pulling out the anchor that supports us both), it seems odd to suppose that the necessity in question grounds moral duties on anyone. I have no obvious moral duty (at least according to many accounts of morality) to perform the necessary task – the task, in these cases, of saving myself (necessitated by our “survival instinct”) – nor does anyone else have any obvious moral duty to me in consequence of my having chosen to do what is necessary. But perhaps in other kinds of cases, claims of need or necessity imply moral duties more plainly or directly. For instance, such claims may seem more persuasive in the case of necessary tasks that involve the welfare of others or in those cases that require not just momentary but ongoing action or care.

The best-known contemporary necessity account is that offered by Elizabeth Anscombe in her 1978 paper “On the Source of the Authority of the State.”⁷ Anscombe begins by observing that, at least in the sorts of cases relevant to our discussion here, “authority arises from the necessity of a task whose performance requires a certain sort and extent of obedience on the part of those for whom the task is supposed to be done.”⁸ Parental authority, for instance (to use Anscombe’s example), arises from the necessity of parental care and tuition, along with the need for filial obedience in performing that task; and the child, whether she likes it or not, is bound to obey her parents simply because they are performing this necessary task. **In the case of political authority**

7 In J. Raz (ed.), *Authority* (New York: New York University Press, 1990). A similar necessity account is defended by Tony Honore (in “Must We Obey? Necessity as a Ground of Obligation,” *Virginia Law Review* 67:1 [February 1981]) and briefly discussed in Kent Greenawalt, *Conflicts of Law and Morality* (New York: Oxford University Press, 1989), 168–70.

8 Anscombe, “On the Source of the Authority of the State,” 147.

and the duty to obey the law, the principal necessity in question is “a very general need of protection of life and limb against violence,”⁹ and the task of meeting this need requires obedience to law. Anscombe recognizes that “the mere fact that someone is performing a task does not suffice to prove that he has a right to what is needed for the performance of the task. It must either be necessary that he should perform the task or be his right to do it, before he can derive a right to certain things from the fact that they are necessary for the performance of the task.”¹⁰ This admission, of course, might seem to threaten to render her argument redundant, since it appears to rest the authority derived from performing a necessary task on a prior right to perform it (this prior right being the interesting one). Further, in the end, Anscombe seems to have in mind that any prior right to enforce the law and demand obedience will be just a “customary right” to do so. What is supposed to make the argument work in the face of these difficulties, it seems, is a second kind of need or necessity: There is, Anscombe claims, a need that such customary rights (to make law and be obeyed) be upheld and protected. And that second need is what establishes the authority of existing states to require compliance with law.¹¹

Tony Honoré’s version of the necessity theory begins with the similar claim that where there is “a need for an individual, a thing, or an institution to be cared for or supervised . . . , a special duty” may fall “on the person who is deemed suitable to render this care or supervision,”¹² Like Anscombe, Honoré uses as his principal examples the moral dimensions of nonvoluntary familial relationships (which work especially well for them both, since we are naturally reluctant to challenge the moral standing of such socially central relationships, even if we cannot really explain the source of that standing): An uncle has a duty to care for his dead brother’s child (where no other relatives can do so), Honoré claims; a raped mother (who could not have an abortion)

9 Ibid., 170.

10 Ibid., 161.

11 Ibid., 170–1.

12 Honoré, “Must We Obey?” 51.

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has a duty to care for her unwanted child.¹³ Similarly, he argues in attempting to explain the duty to obey the law, “in regard to citizens, the state and, through the state, their fellow citizens, are in a position analogous to that of an involuntary parent.”¹⁴ While this appears to suggest that the state has a duty to supervise its citizens and they have a duty to obey in order to make this supervision possible, Honoré’s actual argument strays into one centered on the implied consent given by residents.¹⁵ But so long as the theory actually concentrates on the moral significance of claims of *necessity*, it seems to have a structure similar to Anscombe’s account.

I confess that after all has been said, it is still hard for me to see exactly how the necessity of a task is supposed to establish the authority to compel the compliance by others required for that task. The fact that I am ill and hungry and need care does not on its face seem to give any other person or group authority to dictate to me (and/or others, absent my and/or their consent) in whatever ways are required to meet my need. I strongly suspect that the intuitive force of Anscombe’s and Honoré’s claims about necessity yielding moral authority and moral duty depends heavily on the nature of the specific examples they employ, all of which, remember, concern family relationships. In these cases, I think, we simply *assume* (perhaps without realizing it) an unstated, heavily conventional background morality of family relationships. We do not *derive* this morality from morally neutral facts about the necessity of certain tasks. The intuitive force of the claims made about the authority and duties of parents and uncles draws not on the nonmoral necessity of *those* people doing *those* tasks, but rather simply on our prior conviction that parents and family members do in fact have special moral rights and duties with respect to one another.

But suppose that we grant, *arguendo*, that nonmoral necessity/need does in fact, at least in some cases, ground morally

13 Ibid., 52.

14 Ibid., 56.

15 See David Lyons’ reconstruction of Honoré’s argument in “Need, Necessity, and Political Obligation,” *Virginia Law Review* 67:1 (February 1981), esp. 73–5.

legitimate claims to authority and genuine moral duties of compliance. Even granting this starting point of necessity theories, questions about whether the theory can actually yield a moral duty to obey domestic law abound. There are at least four general aspects of necessity arguments that need to be examined and questioned:

(i) Exactly what makes a task necessary? There is, in my view, no such thing as (nonmoral, nonlogical) necessity *simpliciter*. Tasks are necessary only for or relative to some purpose, end, or desire. Necessity claims in law, for instance, typically concern not what literally must be done, but rather what must be done if certain valuable and valued ends (e.g., life, security, health) are to be secured. Self-defense is not literally necessary unless one assumes that it is necessary to pursue the end of survival (which, of course, it is not). Parents and uncles do not *need* to care for the young children in their families, though we believe they should. Children could simply be allowed to die from lack of care, or they could live and prosper as a result of care provided by nonrelatives. Family members' caring for children is only necessary provided that (a) others are unlikely to provide that care (because of social convention, indifference, etc.), and (more importantly) (b) the goals of children's survival and well-being are goals that are themselves necessary for us – that is, they are goals we are morally required to pursue, goals to which we are strongly personally committed, or goals we otherwise find irresistible. So the persuasiveness of necessity claims to authority and compliance will turn crucially on whether we share the goals or ends relative to which tasks are said to be necessary, or on how we evaluate the importance of these goals or ends. Necessity claims are at best a convenient (and illicitly forceful?) shorthand for claims about the value or importance of certain tasks.

And related concerns can, of course, be raised concerning the ideas, utilized in necessity theories, of certain persons being "suitable" for particular tasks – what exactly is it that makes an uncle suitable for caring for his dead brother's child, beyond our *prior* conviction that uncles ought morally to take on such tasks? – and of things being "required" for the performance of the necessary tasks – is filial obedience really *required* for parents to care for

their children, or does it just make the task much easier and more palatable? I will address these concerns in (ii)–(iv). Perhaps in the end, though, many readers will still share the necessity theorist's convictions about the nature and source of parental authority and filial duty.

It will be harder, I believe, for necessity theorists to convince those readers about the (supposedly analogous) cases of political authority and citizens' duty to obey the law. For in this case the claims that have to be made about the necessity of the task, the suitability of the authority holder, and the things required for the performance of the task are all far more contentious. Taking first the necessity of the task, political and legal institutions (and the tasks that they, as a class, perform) have, of course, often been taken as necessities. Hobbes famously claimed that they were necessary to keep all of our lives from being "solitary, poor, nasty, brutish, and short"; for without the state (or "sovereign") to forbid violence and dishonesty and to threaten punishment for noncompliance, there are too many powerful motives in persons that will inevitably produce war and misery. States allow the provision of security and coordination as public goods. Indeed, without states, the argument goes, a wide variety of important public goods simply would not be produced. Virtually all of us, of course, would strongly prefer that our lives be social, rich, pleasant, cultured, and long; so we will certainly be inclined to agree with Hobbes that if politics and law, political authority and legal obedience, are in fact necessary for avoiding a short, unhappy life, politics and law are very good things.

Now the facts at issue in this claim have frequently been challenged. Anarchists, for instance, have often argued that not only are the legal and political institutions of the state not necessary for us all to lead decent lives, these institutions are themselves the cause of most of the antisocial motives that are alleged to make the institutions necessary in the first place. Others (including some "philosophical anarchists," like myself) have maintained that life under political and legal institutions has certain obvious costs (in individual autonomy, for example), and that persons are not obliged to favor the package of costs and benefits provided by

the state over the package that could be had without the state. The tasks the state performs are necessary only in the sense of being highly valued by most, even when the costs attached to receiving the benefits of the state are factored in. Whether or not one shares in this general valuation is a matter for each individual. So even if necessity claims *are* capable of justifying authority and a duty to obey, the state's authority (and the citizen's duty to obey) would still have to be taken to vary according to these individual valuations. The authority and duty to obey authority could not be perfectly general. If necessity claims do not by themselves justify authority, of course, then people who value what is necessary are still free to choose it, opting for the subjection to legal duty that this involves. Those who do not are morally free to opt out. But that would mean that the duty to obey must in fact be understood in a transactional way. Either way, a necessity that is only relative to certain standard desires or ends can get us only this far.

These arguments seem to me to be not without merit. But let us allow for now that the challenges of life without law and the state are more or less as Hobbes believed them to be, and that we all agree in preferring life in a state to life without. What, exactly, should we take to follow from such an admission? The necessity theorist would have us infer from it that some suitable person or group (or set of institutions?) thereby has the authority to perform the necessary tasks (i.e., the ones that states perform), and that all others whose actions can affect this performance thereby have a moral duty to do what is required to permit the performance of these tasks. The real-life applications of the argument are supposed to be these: The required conduct in question is obedience to domestic law by all citizens (and some others¹⁶); and

16 This group would include, of course, visitors and resident aliens within the law's jurisdiction. The logic of the argument suggests, however, that it might include as well anybody anywhere who could by his or her actions interfere with the completion of the necessary tasks. So the argument would appear to have as its conclusion not only a moral duty to obey domestic law, but a far broader moral duty binding all persons to act as required by the performance of the task.

the suitable person or group with authority is simply our existing set of domestic political and legal officials (or institutions?). But none of this follows as simply as it might at first blush appear to.

(ii) What is required for the performance of a necessary task? Can we actually derive a moral duty to obey from such an idea of requirement? (If a kidney is required for my survival, and so is needed or necessary, do all suitable donors have a clear moral duty to provide one?) All children disobey their parents, some quite regularly. Yet parents still seem to succeed in a perhaps surprising number of cases in raising reasonably (or at least acceptably) well-adjusted children, despite the parents' own frequent poor judgment and despite circumstances often involving financial difficulties, marital and emotional stress, and so on. In what sense, then, is filial obedience required for completion of the necessary task, rather than just being very helpful or convenient to its completion? Are the helpfulness or convenience of actions by others sufficient to ground a moral duty so to act? If it would be very helpful to me in the task of raising my child (but not strictly required for it) that others regularly watch over and help pay the expenses incurred in caring for my child, do they have a moral duty to contribute in these ways? In any event, children do not, I think (for a variety of reasons), generally have a moral duty to obey their parents, nor could such a duty be derived from considerations of necessity and requirement if all other arguments for such a conclusion failed (as I believe they do¹⁷).

The argument from necessity (and from what is required for the necessary task) works, if anything, even less well in the case of trying to derive a general moral duty of domestic legal compliance. Grant, as we have done, the necessity of the task (of guaranteeing peace and security, providing public goods, and so on, through the operation of a formal legal system). But what, exactly, is required for the completion of this task, as opposed to merely very helpful or convenient to its completion? As I will urge in greater detail, universal compliance with legal requirements is

17 See my discussion of filial duties of obedience in *The Lockean Theory of Rights* (Princeton, NJ: Princeton University Press, 1992), section 4.2.

not required for performing the necessary tasks done by our political and legal institutions and officials (however those tasks might be enumerated or characterized). Legal systems tolerate quite impressive levels of noncompliance without performing the tasks in question interestingly less well (than they would with greater compliance). Universal legal obedience might well be helpful or convenient to performance of the tasks of a legal system, but it is plainly not required. Disobedience by some, while most others are obeying, seems unlikely to impede performance of the necessary task. Further, of course, we all confront reasonably regularly circumstances in which it will simply make no difference to anything whether we obey or disobey the law. So it is hard to see how the idea of obedience being required for the necessary tasks of the state can really justify our extending the state's authority – and our moral duty to obey – to those frequent instances in which compliance with authoritative commands simply is not in any recognizable sense required for the accomplishment of whatever might be identified as the state's necessary tasks.

Similar conclusions follow from the simple observation that typical states perform many functions that are completely unrelated to their performance of the necessary tasks of guaranteeing peace and security. While (for example) interstate highways, national parks, and national museums may all be things that we want our states to provide, the coercive collection of tax dollars required for their provision can hardly be justified by appeal to the necessity of the task. These goods are simply not necessary in anything like the sense in which basic security is necessary. But if that is true, then an argument from the necessity of the state could at best ground a duty of very partial obedience to law, with obedience (e.g., to tax laws) being required only insofar as obedience was supporting the state's genuinely necessary activities.

(iii) On precisely whom does necessity confer authority? Even supposing that necessity theories of the duty to obey could establish that institutional authority and general compliance are essential to accomplishing certain necessary tasks, it would still remain insufficiently clear why the relevant authority should be located in one party rather than another. Why should biological

parents (or other blood relatives) be thought to be the ones on whom the authority to perform the task of childrearing principally falls? Any notion of natural suitability for a task – that is, any notion of suitability that is not itself thoroughly and illicitly loaded with conventional and moral content – will plainly not do the job here. Blood relatives are often quite thoroughly unsuited to the tasks in question, especially – but certainly not exclusively – where the children are unwanted or are not the direct offspring of the blood caregiver. While biological parents often love and feel naturally bound to their offspring, this is certainly not always the case; and one who is in fact unrelated to a child by blood may often feel rather more strongly about that child's well-being than do its blood relatives. The authority of biological parents over their offspring (and that of other blood relatives, as next in line) is quite plainly customary, based at best only in extremely broad (and regularly contradicted) generalities about natural suitability.

All that I have said of parental authority is, one might think, even more true in the case of domestic political and legal authorities. While the administration currently in power normally enjoys customary (and legal) rights to be the group that makes and enforces law (and so on), we would be hard pressed to argue that these rights arise from their natural suitability to the task. Lawmakers often are (and have in the past normally been) either inheritors of their positions or brutal conquerors, neither of which source of authority seems likely to track natural suitability for peaceful rule. **And even elected lawmakers are certainly not uniformly (and, the more cynical might say, are virtually never) those best suited to the necessary tasks at hand (as opposed, say, to being those best suited to the rather different tasks of fundraising, campaigning, spouting empty rhetoric, and projecting attractive images). Why, then, should we take such customary assignments of political and legal authority to signify anything of moral interest?** More to the point, why should a necessity theorist see them as morally interesting if they track so poorly natural suitability for the relevant necessary tasks?

The only reply that I can locate in defenses of (or think of to help) the necessity theory is Anscombe's: The kinds of customary

rights to authority in question here – those of biological parents and those of officials lawfully in power – are themselves needed, and so are themselves morally justified by their necessity. But should we be persuaded by such a response even if we are sympathetic to claims about the moral implications of necessity? It may well be that *some* customary distribution of authority is necessary if all is not simply to be left to the control of the strongest or the most persuasive. And it may well be, in addition, that the distribution of customary rights in question is better or more useful than would be other patterns of distribution that we can easily imagine: Giving authority to those most likely to care about the children needing to be raised is clearly superior to distributing parental authority randomly among all adults, say; allowing political and legal authority to go to those who are elected for it or to those who inherit it seems better than letting it go to those who seize it by force or who make the highest bid for it (the latter of which, those cynics might note, is perilously close to the actual rule in existing democracies). But the fact that the accepted range of customary rights to authority seems better than others that we can imagine does not show that the customary distribution of authority is somehow necessary or even beyond moral criticism. And if it does not show this, then why (from the point of view of necessity theory) are the customary assignments of authority not morally open to challenge from those who disagree with them – especially from those who correctly contend that they could perform the necessary task in question better than the person or group to which customary rights assign authority to act?

Consider for the moment the moral position of rival claimants to the authority assigned by customary right to officials lawfully in power. Why should rival claims to authority to perform a necessary task be thought to be automatically inferior to the claims of those in power? Being in power may or may not indicate superior ability, understanding, or, more generally, possession in greater measure of those traits that facilitate performance of the necessary tasks. Displacing those who are in power and on the job routinely will, of course, introduce various transaction costs that would not have to be paid by allowing them to remain in power.

But the same is plainly true of displacing clearly illegitimate officials, and we do not regard the costs of transferring power in those cases as necessarily undermining purported justifications for removing and replacing the illegitimate officials who are currently in place. As in that case, the moral defensibility of rival claims to authority seems to turn less on who currently holds what than it does on whose claim to authority is more justifiable in the relevant terms. Where the relevant terms are necessity, rival claims to authority seem likely to be sometimes capable of being very well justified.

I will not try to examine carefully here the claims to parental authority of biological parents, as these might be compared to possible rival claims by others. Much of the force of biological parents' (apparently superior) claims turns, in my view, on shared intuitions about property (in the child) and labor (by the mother), neither of which has any obvious relevance to the supposedly analogous case of the political authority of those who make and administer law. Perhaps we should suppose that the analogy between the two cases consists in the fact that both biological parents and existing political authorities are "first come" to the necessary tasks, and so should both be "first served." The superiority of their claims to authority over those of their rival claimants lies simply in their having gotten there first.

But this defense seems implausible. "First come, first served" is a maxim that appears to track the moral superiority of claims principally in cases where equal opportunities remain for others to make similar claims on different portions. Thus, for instance, Locke can plausibly argue that the first person to labor productively on unowned nature acquires a special claim (i.e., private property) in it, but only because he adds that others must be left "enough and as good" on which to make similar claims of their own.¹⁸ Political authority, however, is by definition exclusive and monopolistic. Your first claim on such authority leaves nothing else to be claimed by rival domestic claimants. It is a case not of first come, first served, but rather of first come, only one served.

18 John Locke, *Second Treatise of Government*, section 27.

Why should we believe that the necessity of the tasks of making and enforcing laws implies that those first on the job have the only legitimate claim to be the ones to perform those tasks? On its face, the logic of the necessity argument seems to drive us in the direction of assigning authority to those who will do the necessary task best (most efficiently, justly, etc.), not to those who happen to be doing it now. In order to defend a conservative account of the *location* of the authority to perform necessary tasks (as opposed to just defending the *need* for such authority), necessity theorists seem compelled to appeal to nonnecessity considerations – considerations of the sort that we will consider in the subsequent sections of this chapter.

(iv) Finally, on precisely whom does necessity impose duties? We have considered necessity theory's claims about the location of authority, but have not thus far pressed that theory on the question of the location of the moral duties that theory wishes to assign to others to facilitate the tasks performed by the authorities. Since these duties – and, particularly, the moral duty to obey the law – are our primary concern in this essay and will be discussed extensively in the remainder, I will here say enough only to introduce what I take to be two classes of persons that should be particularly troublesome for necessity theory (and, indeed, as we will see, for all Natural Duty theories). The classes of persons I have in mind we can call “unusual valuers” and “self-providers.” Government and law are said by necessity theories to perform a variety of necessary tasks. Others are said to owe moral duties to obey (and otherwise facilitate performance of the tasks by) the established authorities. What shall we say, though, of those who simply disagree with the necessity claim, not sharing the preferences or values (or the weighting of these preferences or values) of that majority for whom the goods provided by the state are indeed necessities (perhaps because they value more greatly than the majority such goods as independence, autonomy, and self-government)?¹⁹ And what shall we say of persons or groups that

19 I speak here of conflicting values or preferences not because I believe (with some consequentialists) that it is the job of the state to somehow resolve

strongly prefer to provide for themselves, where possible, those benefits that law and government supply, and to simply do without where self-provision is impossible? Self-providers want to do their best, say, to provide security for themselves (with vigilance, defenses, or hired guards), to interact economically with others without outside guidance or control, to make and maintain with others roads and common spaces, to self-provide for emergencies, and so on. How does the necessity of a task speak to those who want to do the task (insofar as they even accept its necessity) themselves? Provided that they interact peacefully with others, they seem not to endanger the performance by others of the tasks those others take to be necessary. Yet we know, of course, that self-provision is routinely prohibited and punished by the authorities of existing political communities, and that the moral duty to obey the law is normally taken to bind all within the relevant legal jurisdiction, regardless of whether (or how much) they value the goods secured for all by law. Do unusual valuers and would-be self-providers have a moral duty to obey the law, along with all the others who are subject to domestic law? It is not clear how simple considerations of necessity can help us to answer this question in the affirmative, as necessity theorists purport to be able to do. In this way too, then, necessity theory appears to lack the resources to explain a general moral duty to obey the law.

In the end, then, necessity theories look more like the first stage of an account of our duty to obey the law than a complete account (just as the structure of “the argument” suggests). The natural ways to try to complete the argument for a duty to obey involve first appealing to the kinds of nonnecessity-based natural moral duties noted in Premise 2 of the argument. Theories that incorporate such duties seem better positioned to respond effectively to my four concerns about simple necessity theories. Whether or not the more complicated theories utilizing these natural duties

such conflicts or to aggregate preferences. Rather, I intend this point about the possibility of unusual values or preferences to speak only to the kinds of claims of need or necessity made in necessity theories of a duty to obey. I take individuals’ values and preferences to regularly bear heavily on what is necessary for (or needed by) them.

can actually overcome these obstacles to a plausible account of the duty to obey will be the question asked in the remaining parts of this chapter.

Respect and Deference

Suppose, then, that we agree that necessity theories are importantly incomplete as accounts of a general moral duty to obey domestic law. How might the argument be more satisfactorily continued to yield the desired conclusion? In her defense of the necessity theory of authority, Anscombe observed in passing that “authority might be thought to be a right to decide in some domain, and its correlate not to be obedience, but respect.”²⁰ Respect, one might naturally believe, is in fact a key issue in addressing the question of how we ought to relate to our political and legal superiors. After all, those who defy and make light of the authorities are often criticized as being disrespectful. And respect is something that most of us believe we owe to others, at least insofar as they are making a good-faith effort to do what they believe is right (and perhaps even when they are not). Indeed, the point might be not so much that we should focus on respect *rather than* obedience, as Anscombe’s remark suggests, but rather that respect and obedience are importantly related, so that the moral importance of respecting others might be a fruitful starting place for trying to understand a moral duty to obey. And emphasizing the importance of respect, of course, will develop more obviously the Kantian character of the argument. While Kant was certainly moved by aspects of the simple necessity argument, he was much more centrally concerned with the moral imperative that we respect one another (that is, that we treat one another as ends in ourselves). As we will see, however, the Kantian’s insistence on mutual respect (as an aspect of an argument for a duty to obey) can take many forms.

Philip Soper has recently defended a Kantian natural duty theory that relies on the importance of respect in a particularly

20 Anscombe, “On the Source of the Authority of the State,” 148.

straightforward way. In some of his earlier work, Soper's claims mirrored closely those made in the argument.²¹ The necessity of coercive government being established, persons who make a good-faith effort to do what is necessary – by governing, by making and enforcing law – are owed respect for this effort by those who find themselves subject to political and legal authority. Showing respect for others importantly includes taking seriously what those others care about (Soper again uses the family analogy, comparing the position of citizens with that of the child who owes respect to her parents); and political and legal officials act in the hope and expectation that others will voluntarily comply with the laws they make and enforce. Legal disobedience, then, shows disrespect for those officials (just as filial disobedience shows disrespect for parents who are making good-faith efforts to do an important job), breaching (what we might call) the natural duty of respect.

Soper's most recent work, *The Ethics of Deference*, revises, extends, and explains his earlier defense of a duty of legal compliance, utilizing a wide-ranging and interesting exploration of the moral importance of deference to others. It is on this more recent and complete account that I will concentrate here. According to Soper, many of the familiar philosophical puzzles about obligation and obedience can best be addressed and solved through attention to (what he calls) the "ethics of deference." Persons may, he claims, often have strong moral reasons (including moral obligations or duties) "to defer to the views of others, including the state, in deciding what to do . . . – even if the views to which they defer are wrong."²² Such occasions include when those persons have made promises to others, when community norms require them to cooperate in producing important collective goods, and when persons are required to act or forbear by domestic law. The obligation to keep promises, obligations of fair play, and political

21 See especially *A Theory of Law* (Cambridge, MA: Harvard University Press, 1984) and "Another Look at the *Crito*," *American Journal of Jurisprudence* 41 (1996).

22 *The Ethics of Deference*, 8. Subsequent references to the book in this section will be in parentheses in the text.

obligation (including the duty to obey the law) are all, then, to be explained similarly by reference to the idea of moral reasons for deference. In this respect, Soper's approach to explaining the duty to obey is importantly like Hume's (as Soper notes [28]), since both, rather than trying to derive that duty from a more fundamental one, instead argue that the duty to obey stands on precisely the same footing as (and is equally as basic as) the duties from which other theorists have tried to derive it.

Promises, Soper argues, should be kept not only for the familiar utilitarian reasons (that apply in many cases), and because deference to the wishes of the promisee is sometimes (as in reasonably intimate contexts) necessary for the promiser to show respect for others, but because the clearest point to the practice of promising (a point that almost all persons recognize and accept) is precisely to assign to the promisee the right to decide (and to the promiser the obligation to defer) in cases where the parties disagree about what ought to be done (136–8). Duties of fair play, on Soper's view, similarly “ultimately depend on the obligation to respect the views of others, even where those views differ from our own.” Where a norm requiring deference (i.e., playing one's expected part in the scheme) is in place in the relevant community, and where “valuable goods are at stake,” persons have moral duties to “play fair” and do their part (157–8).

Political obligation (and the duty to obey domestic law) requires a defense that is slightly different than the ones Soper offers for promissory and fair play duties. But because the duty to obey the law is precisely a duty to obey even when one disagrees with the law, this duty too, he argues, is best understood as a moral duty to defer to the views of others. “The respect shown by deference in [this case] is required not solely or even primarily because of the consequences if one fails to defer” (163); “no single act of disobedience is likely to have significant effects on the community” (164). Rather, “the reasons for deference in the case of law are Kantian in character, demanding that one avoid . . . inconsistency between one's actions and one's own admitted norms.” The state (with its legal system) is necessary (for security) and “is the kind of entity that requires some to govern,

in good faith, on behalf of all" (167). Unless I am a sincere anarchist who denies this, "the law's expectation of voluntary compliance corresponds to what I would expect if I were the legislator. The duty to respect the legal norm is a reflection of the duty to respect the values I myself acknowledge" (164). So legal disobedience both "shows disrespect for hypothetical others (legislators who [may not] know but whose expectations are clear), as well as for one's own values" (172). "Understanding what a legal system is *and admitting that it is valuable*" entails "that one is being *morally* inconsistent in denying that deference is due to the state's norms" (173; emphasis in the original).

I am frankly uncertain what to make of the idea of disrespect to "hypothetical others." But legal disobedience, I think, just cannot be taken (in normal circumstances) to show morally wrong disrespect to *actual* legislators, regardless of the facts of legislators' alleged good-faith efforts to do a necessary task and their alleged expectations of compliance. In the first place, legislators' motives and expectations are normally both deeply mixed and (partly in consequence) unclear to citizens, making consciously disrespectful conduct quite a difficult enterprise; and, unless they are fools, legislators' expectations certainly do not include universal voluntary compliance with law by the citizenry. Further, the fact that I myself would want others to obey my laws, were I a legislator, seems no more relevant to my present duties than does the fact that I would want others to buy my product were I a manufacturer. Unless the necessity of the task by itself suffices to ground particular rights and obligations – as we have already seen that it does not – the obvious difference between legislating and manufacturing appears not to be a relevant difference for the force of an argument from "hypothetical desire." If necessity arguments cannot by themselves establish the location of authority and a general duty to obey it, how can the mere fact that were I in power I would want my authority respected make any difference to the conclusion?

More importantly, however, the idea of showing respect for another (or oneself) is notoriously obscure. And there are many kinds and degrees of disrespect, not all of which are morally

wrong. Does a child's playing hooky really show morally prohibited disrespect for his teachers and school administration (who do a necessary task and expect his attendance)? If so, it does so in a *very* different way than would his assaulting them, ridiculing them in public, or actively obstructing their efforts to educate willing students. It may or may not frustrate their expectations or even their desires. One thing it surely does *not* do is demonstrate disrespect for them in any very *clear* or obviously morally prohibited fashion. When one of my undergraduate students calls me "dude," his fellow students might say that he is "dissing" me. He is failing to demonstrate appropriate awe in an encounter with **someone of my lofty status**. But he is plainly breaching no moral duty. We can call disrespectful actions ranging from independent-minded unconventionality and simple impoliteness all the way to violent assault. And the disrespectful acts at either end of this spectrum have, I think, very little in common from the moral perspective.

Disrespect in the Kantian (and morally serious) sense, in my view, essentially concerns failing to treat others as autonomous sources of value (as ends in themselves), treating them solely as means to our own ends. We can do this by killing them, by disabling them or in other ways interfering with their autonomous pursuits, by failing to give help that is necessary to their capacity for autonomous action, and so on. It is these kinds of actions (or omissions) that are forbidden by our natural moral duties, the proscriptions and requirements at issue being plainly necessary to mutually respectful and civil coexistence. But mere disobedience to rules made by others and applied by them to us (without our consent or participation), particularly where such disobedience does not directly compromise, frustrate, or adversely affect their enterprises, seems unlikely to qualify as obviously disrespectful to others in any very strong, morally important sense. As a result, having (correctly, in my view) conceded that legal disobedience often has no real effect on the community or its legal system (or its legislators), Soper will have a very difficult time persuading us that legal disobedience nonetheless typically demonstrates the kind of serious disrespect for others that is forbidden by our natural moral duties.

What, though, of the other part – apparently now the central part – of Soper’s argument for a moral duty to obey? He argues, remember, that **in disobeying the law we are inconsistent with our own values/norms, provided only that we (as nonanarchists [or, in my case, as only a philosophical anarchist]) are prepared to concede that the legal system has value**. Soper also assumes, of course, that we do, as Kant seemed to insist, have a moral duty to avoid such inconsistency. But we can certainly question Soper’s belief that mere moral inconsistency of this sort is morally prohibited. **The death squad member, sincerely affirming the value of the program of ethnic cleansing in which he is engaged, clearly does no moral wrong in letting some of his intended victims escape (whether on a whim, out of sudden squeamishness, or from some remaining shred of simple humanity). Inconsistency with one’s sincerely affirmed values seems to me to bear far more directly on questions of personal integrity (which is, as this example illustrates, not always even a moral virtue²³) than it does on the question of our moral duties**. So it seems reasonable to question the very starting point of this portion of Soper’s argument, however familiar it may be to us from discussions of Kantian ethics.

More important for our purposes here, however, are the questions that ought to be raised about the rest of Soper’s argument – and, in particular, about his claims concerning the implications of sincere ascriptions of value. Understanding something and admitting that it has value, Soper appears to contend, entails accepting certain moral duties to uphold or promote that thing (and thus the values it embodies). **But accepting moral duties (in the sense of believing that I have them) is clearly not the same as actually having those duties**. And even the lesser claim – that admitting value entails accepting duties – seems clearly false. Indeed, it seems false even when we are talking about the performance of those necessary tasks that Soper clearly has chiefly in mind. I can understand the warlord’s position of power and admit that

23 For a convincing defense of this view, see Nancy Schaubert, “Integrity, Commitment, and the Concept of a Person,” *American Philosophical Quarterly* 33:1 (January 1996).

his rule has value (he ruthlessly suppresses theft and murder, say, taking on that necessary task) without being in any way committed to (or bound by) a moral duty to support his position or obey his rules. What matters in such cases is surely whether I take (or take correctly) the power he exercises in his dealings with me (and others) to be legitimately exercised. And that issue cannot (as we have seen) be addressed by simply observing that he seized the power first.²⁴

The point I am making here can perhaps be better formulated in terms of the distinction I have drawn between (what I have called) the “justification” of some institutional (or other) arrangement and its “legitimacy” with respect to me.²⁵ We can justify arrangements simply by demonstrating that their existence is a good thing, that we have good reason to create or refrain from destroying such things. We justify them by showing that arrangements have value, that their benefits outweigh their costs, that they possess interesting virtues. By contrast, legitimating an arrangement that involves some claiming the authority to control others involves showing that a special relationship of a morally weighty kind exists between those persons, such that those particular persons should have authority and those particular others should have a duty to respect that authority. This kind of legitimation simply cannot be demonstrated by merely pointing to the justifying virtues of an arrangement; a different kind of argument is required. There are (and have been) many good arrangements (e.g., many schemes for producing worthwhile public goods) that have withered or disappeared precisely because they

24 Soper acknowledges his acceptance in many cases of what seems to be “normative power for ‘whoever goes first’,” attempting to justify this counterintuitive principle by claiming that it is not really going first that matters, so much as that once another has gone first, my refusal to defer will result in an inferior sort of community (e.g., a competitive one) between us (*ibid.*, 174, 179). But because Soper acknowledges that legal disobedience (i.e., nondeference to legal authorities) will often have no effects at all on the community, this rationale for deferring (which seems to me weak even in the most favorable cases) simply cannot apply to the case of legal and political authority – the case with which we (and apparently Soper) are most concerned.

25 See my “Justification and Legitimacy,” especially 123–30, 135–9, 154–5.

could not plausibly claim the authority to require that persons support them. That an arrangement is a good thing plainly cannot give persons authority over simply whomever they might choose to select as subjects. Only a legitimating special relationship, not a justifying virtue or benefit, can ground claims of authority and subjection. Control of some by others is personal; so must be its legitimation. The impersonal virtues of arrangements involving control simply do not entail personal legitimations of control.

Where we harm or threaten harm to no others, **control of us by others without our consent constitutes a clear limitation of our autonomous pursuit of value – a limitation in the name of values that we may not share or rate highly.** In some cases, limiting our freedom is plainly necessary in order to compel respect for the similar freedom of others (though precisely who is entitled to do this limiting remains an issue). But where this is not the case – that is, where we harm or threaten harm to no others' autonomous pursuit of values – any argument purporting to demonstrate a moral duty on us to defer to others or to obey rules made by them for us will always look suspiciously like a mere rationalization of their desire to get their way, by forcing us to do what they want us to, without any justification that we could reasonably be expected to accept. While the desire is understandable, it is not defensible. **Where controlling me is not necessary for respecting another's autonomy, respecting *me* requires that my wishes and will be taken seriously.**

This is the point of the traditional (voluntarist) insistence that the legitimation of my subjection to practices and rules made by others requires my voluntary agreement. This is why consent theory retains its strong appeal, for both theorists and ordinary persons, despite its (inevitable) historical failure to demonstrate the existence of those widespread political obligations (and duties to obey the law) in which so many people seem to believe. The subjection of some to the will of others is a serious matter, morally speaking, and its defense requires powerful moral argument. Those who subject others without such defense do so at their own hazard (both prudentially and morally). Soper, of course, denies this. In arguing that promissory obligations and the duty

to obey the law are equally basic, requiring similar justifications in terms of the ethics of deference, Soper tries to deny that the obvious difference between the two – that is, that promissory obligations must be undertaken voluntarily, where the duty to obey falls willy nilly on all in the state's territories – is a relevant difference. But his ultimate defense of this view is only that “legal systems are necessary in a way that making promises is not.”²⁶ And we have seen that such claims of necessity will not save the day in attempts to demonstrate either the existence or the location of authority or particular duties to respect authority.

The Natural Duty of Justice

Doing Justice

It may seem that my critique of Soper can appear to succeed only because it unfairly fails to explore deeply enough the ways in which refusal to acknowledge a moral duty to obey domestic law shows disrespect for (and a failure of obligatory deference to) others. We can see this, it might be thought, simply by reviewing the well-known arguments to that conclusion mounted by the most important of the Kantian Natural Duty theorists, namely, Kant himself. The respect at issue in Kant's own arguments seems not to be the respect that we owe to legal officials making good-faith efforts to do a necessary task (or to be based in what we ourselves would want or expect were we such officials). Rather, according to Kant, we fail to respect others simply by living near them without an institutional enforcement of justice, for in doing so we threaten them with unjust conduct. Respect for others requires that we not so threaten them. One who lives near me “in a mere state of nature robs me of any . . . security and injures me by virtue of this very state in which he coexists with me. He may not have injured me actively . . . , but he does injure me by the very lawlessness of his state . . . , for he is a permanent threat to me.”²⁷

26 Soper, *The Ethics of Deference*, 164. See also 110–11.

27 Kant, *Political Writings*, ed. H. Reiss, trans. H. B. Nisbet (Cambridge: Cambridge University Press, 1991), 98n.

Kant also makes this same point in the language of justice.²⁸ As a consequence, for Kant, justice (or right) requires that we (where necessary) create and on all occasions submit to (i.e., obey and support) the legal and political institutions charged with doing justice in our societies.²⁹

Suppose, then, that we begin by understanding the Kantian claim as follows: Our duty to obey our countries' laws can be derived from a more general natural moral duty to do or promote justice. One might, of course, understand a natural duty of justice in any of a variety of ways, given the many ways in which we (along with moral, legal, and political philosophers) have used the term "justice." But undoubtedly the most basic and fundamental meaning given to the term is simply respect for or satisfaction of the moral rights of others. This is Kant's understanding of justice as well: The duties of justice (duties of right, juridical duties) are the perfect duties that we owe to others – that is, the duties that correlate with others' rights.³⁰ We do or promote justice when we discharge our duty not to personally violate others' rights and/or our more comprehensive duty to help ensure that others' rights are not violated by anyone (i.e., that all get that to which they have moral rights, that all are treated justly). The derivation of a duty to obey the law proceeds, then, by arguing that discharging this duty (to respect the rights of others) requires, in part, that we obey the laws in force over the territories in which we reside, as well perhaps as those in force where we visit (provided, at least, that the laws themselves are tolerably just).

In its most minimal form, the natural duty of justice would require only that we refrain from personally violating others' rights

28 Ibid., 137–8, 165.

29 "And I can require him either to enter into a common lawful state along with me or to move away from my vicinity" (ibid., 98n). Kant's own arguments actually focus on what is necessary for individuals to be secure in their enjoyment of their rights specifically to acquire and possess things – that is, *property*. This emphasis on property rights in things – as opposed to other kinds of rights to liberty and nonaggression – is not shared by contemporary Kantians, and I will ignore it here.

30 Kant, *The Metaphysics of Morals*, trans. M. Gregor (Cambridge: Cambridge University Press, 1991), 47, 64–5.

(rather than also assisting in minimizing rights violations by anyone). Those rights might be purely negative (rights to forbearances only), so that we do justice when we refrain from aggression toward or breaking faith with others. Or the rights in question might include positive rights (rights that we act positively for others' benefit), such as rights of rescue or charity, held by the needy against those who are in a position to help. Locke is probably the best-known classical philosopher who employs this latter version of the minimal conception of a duty of justice. For Locke, the rights we must not violate in order to do justice include both negative and positive rights; he clearly defends not only the familiar rights against aggression by others, but also (contrary to his popular reputation) a right to charity – that is, a right to the surplus goods of others where receiving those goods is necessary to one's survival.³¹ The same minimal conception of justice – where justice requires only personal restraint – is embraced by many contemporary libertarians, though they often decline to include general positive rights in their list of others' moral claims against us.³²

What is distinctive about this minimal conception of the natural duty of justice is that, so conceived, the duty can plainly be discharged by individuals regardless of their social circumstances. Even in a relatively disorganized state of nature (as Locke emphasizes) it is perfectly possible – even if sometimes difficult – for persons to do their duty, obeying the natural law requirement of respect for others' rights. In peaceful social – but nonpolitical – settings, doing justice would presumably be easier, while in a legally ordered contemporary political society, it seems, it would be easier still. But if the duty of justice could be discharged in a nonpolitical social condition, then it is hard to see how we could reasonably derive from the duty of justice a duty to obey our countries' laws. If the duty in question can be fully discharged by persons in conditions where there is no law, it is

31 For an extended discussion of this positive side of Locke's theory of rights, see my *The Lockean Theory of Rights*, Chapter 6.

32 The standard libertarian view of positive moral rights appears to be that these can arise only from promise (contract, consent) or deliberate or negligent injury (requiring rectification/reparation).

difficult to see why it could not be fully discharged by performing those same actions in conditions that include a functioning legal system. While performing these actions might in fact regularly satisfy the legal system's requirements – since the rules of most legal systems at least overlap the rules of morality, forbidding actions like rape and murder that also violate people's moral rights – there would be no general duty to obey the law. Our duty would be only to respect the moral rights of others, whether or not doing so satisfied the demands of law. Only if people's basic moral rights were somehow altered by their being born within a political society with a legal system would a duty to obey the law seem to follow naturally from a duty of justice.

It is, however, relatively easy to see how a duty to obey the law might be believed to flow from the natural duty of justice if we understand justice or the rights of others in a slightly more expansive – but still perfectly familiar – fashion. For instance, it is common to think of justice in a way that involves a certain distribution of social goods, including income and wealth. Justice, we might argue, requires a much more equal division of wealth than is currently in evidence in the world (or in one's own country) in order that none be left dependent on the largesse of others and so that all enjoy a guaranteed level of material well-being sufficient for a decent life and the pursuit of rewarding plans or projects. All persons, we might continue, have a moral right, held against all others, that such distributive goals be achieved. Thus, the failure to achieve them in fact constitutes an injustice in our original sense – namely, a violation of others' rights.

Understanding others' rights – and the duty of justice – in this broader fashion has one clear consequence that is directly relevant to our current concerns about a duty to obey the law. Where persons are conceived of as enjoying rights (held against us) to a certain "distributive condition," we can no longer argue that the duty to respect others' rights can be easily discharged by individuals in a chaotic state of nature or in any other kind of nonpolitical setting. For only the most bizarre good fortune could ever put an individual in a situation where he was able to unilaterally completely restructure and subsequently maintain the proper

distribution of property in the world (or even in his society, if we think of the duty as owed only more locally). Similarly, it would take a very strange, and undoubtedly only very temporary, twist of fate for the existing structure of holdings in the world to by itself come to match so closely the requirements of distributive justice – or for persons in the world to cooperate *voluntarily* to bring about that just distribution – that individuals were then in fact able to unilaterally ensure that others' rights to this just condition were not violated. In short, if we understand the moral duty of justice in this broader way, there is every reason to suppose that my discharging that duty (i.e., my not violating the rights of others to distributive justice) will require me to do my part in creating and supporting whatever national or international institutions might be available (or possible) to coercively bring about a just distributive condition for all (locally or globally). And there seems further to be good reason to suppose that my supporting the institutions that are necessary for doing justice in this way will require me to uniformly or regularly obey the rules by which those institutions promote justice. In short, discharging my duty to do justice implies a duty to obey the laws of justice-promoting institutions, including those of my home country.

The duty to obey begins to look like a natural consequence of a duty of justice, then, if we think of persons' moral rights not only as claims against others that those others not *personally* harm their interests, but also as claims against others that they help to ensure that all receive justice. On this conception, I do others an injustice – I wrong them or violate their rights – when I resist or fail to contribute to the establishment of a general institutional enforcement of rights. Here we approach the position defended by Kant and more recently by contemporary Kantians like Rawls.³³ As we

33 In addition to those theorists discussed later, Allen Buchanan has recently defended a similar view. Buchanan, reasoning from a general Kantian principle that all are entitled to equal respect and concern, defends a natural duty of justice that he understands as "a limited moral obligation to help ensure that all persons have access to institutions that protect their basic rights" (*Justice, Legitimacy, and Self-Determination*, 27, 86–92). Buchanan seems (unlike Kant and Rawls) to deny the possibility and the importance of deriving from this

have seen, other persons have a right, according to Kant, that we abandon the state of nature and do our part in creating and supporting an institutional structure that will legally (i.e., coercively) enforce our rights – that is, that will make real justice possible. While Kant was less concerned about distributive matters (such as equalizing material holdings) than are contemporary Kantians,³⁴ Kant was emphatically opposed to the (Lockean) idea that our duties can be discharged without our belonging to – and without our obeying the laws of – some civil (political) society. Others have rights that we quit our natural condition (in which we are a constant threat to them), that we help create and scrupulously obey the rules of the coercive legal system that alone can guarantee or “realize” their rights, and that we do nothing to weaken or undermine these essential institutions.

The Rawlsian Natural Duty of Justice

John Rawls offers a somewhat different (and mercifully less metaphysical) justification for his natural duty of justice than did Kant.³⁵ But he plainly agrees with Kant that we should understand our natural duties to require of us that we support and obey the rules of the coercive institutional structure that is necessary for justice to be done. There is no hint in Rawls that we could discharge the relevant duty of justice unilaterally in a state of nature (or in any other condition apart from membership in a political society). Indeed, where Kant worries prominently about the moral condition of persons in a state of nature, Rawls barely mentions the state of nature, except in noting the analogy between that idea’s role in traditional social contract theory and the role of the “original position” in his own hypothetical contractarian theory of

natural duty any general moral duty to obey the law (238–40). But it is clear that he *means* only that there is no duty to obey owed to *government*. Buchanan argues that in a democracy (a form of government that is required as a matter of justice [256]), citizens have obligations owed to *each other* “to take compliance with the laws seriously” (253).

34 *Political Writings*, 75–6.

35 The arguments of this section draw on and extend those of Chapter VI of my *Moral Principles and Political Obligations*.

justice.³⁶ The moral duty of justice is “natural” for Rawls primarily in the sense that it binds persons regardless of their voluntary acts and that it holds between persons conceived of as moral equals (i.e., independent of “their institutional relationships”).³⁷ Rawls begins his political philosophy with the (realistic) idea of persons already existing in a multiplicity of independent, territorial political societies, and he asks what can reasonably be required of persons (and, in his later work, of societies or “peoples”) in such a condition. The duties of persons in their “natural condition” is simply not a central concern for Rawls.³⁸

The “most important” natural duty under which each of us stands (in our current condition) is, according to Rawls, the natural duty “to support and to further just institutions.” That duty requires the following:

First, we are to comply with and to do our share in just institutions when they exist and apply to us; and second, we are to assist in the establishment of just arrangements when they do not exist, at least when this can be done with little cost to ourselves. It follows that if the basic structure of society is just,

36 John Rawls, *A Theory of Justice* (Cambridge, MA: Harvard University Press, 1971), 12.

37 Ibid., 114–15.

38 Since Rawls’ theory of the “principles for individuals” (that is, of the duties and obligations that bind individual subjects) is in fact only a theory of the principles that would bind people in just political societies, that theory seems to directly imply nothing at all about the natural moral duties of persons living in seriously unjust societies or outside of political society altogether. And the natural duties actually discussed by Rawls are not “natural” in any very strong sense, but are only the “postinstitutional” moral duties that original position reasoners would select to bind themselves in their subsequent interactions. As such, much of the discussion to follow may seem to be aimed at a Rawls who is more Kantian than Rawls actually wished to be. But on my understanding of Rawls, there is no reason to accept the original position reasoning as yielding a morally interesting theory of justice (and of postinstitutional natural duties) unless persons have certain natural duties (and correlative natural rights) in the stronger sense discussed here. For instance, they must at least have the *preinstitutional* duty to treat others as equals (or to deal fairly with them), or the original position construction will seem to have simply been drawn from (morally) thin air. I thus take Rawls to be committed to the existence of a *preinstitutional*, Kantian-style natural duty of justice (fairness, equal treatment), and my criticisms proceed accordingly.

or as just as it is reasonable to expect in the circumstances, everyone has a natural duty to do what is required of him. Each is bound irrespective of his voluntary acts, performative or otherwise.³⁹

I will not try to elaborate here on what constitutes “the basic structure of society” for Rawls (Rawls may not have been entirely consistent in his various accounts of this idea) or on what would make such a structure “as just as it is reasonable to expect in the circumstances.” Nor will I concern myself here with the obvious asymmetry between the second part of the duty, which is qualified with a cost limit (requiring action only if it costs us “little”), and the unqualified character of the first part of the duty (which appears to require compliance and doing our share, regardless of what this costs us).⁴⁰ We can, I suppose, assume for the moment with Rawls that compliance and doing our share will not, at least in reasonably just states, involve severe costs for individuals. Or we can suppose instead that the Rawlsian natural duty simply runs out once we have completed our routine, low-cost compliance (and so on), no longer binding us in the case of institutional demands for significant sacrifices.

It is sufficient for our purposes at this point to note that the natural duty of justice, as it was understood by Rawls, plainly does not imply an unqualified duty to obey the law (“to comply,” to “do what is required”) except in social conditions that come reasonably close to satisfying Rawls’ famous two principles of justice.⁴¹ In less just circumstances (which we might expect

39 Ibid., 334.

40 The asymmetry between the two parts of Rawls’ natural duty of justice and the possibly high costs of legal compliance (when one considers laws like those requiring military service) both play central roles in George Klosko’s attack on Rawls’ Natural Duty account of political obligation (in “Political Obligation and the Natural Duties of Justice,” *Philosophy & Public Affairs* 23:3 [Summer 1994]).

41 It might seem that we should question Rawls’ insistence that the duty to comply binds us only in the case of reasonably just or near-just states. After all, considerably less just states may still do much of the same essential job that just states do in providing security, producing public goods, etc. After all, even the Third Reich enforced laws prohibiting murder, assault, and rape, provided some forms of poor relief, regulated commerce and traffic, etc. I suspect that

to characterize quite a number of existing societies), the natural duty of justice requires not obedience to law, but rather whatever low-cost assistance we can manage in helping to bring into existence reasonably just institutional structures. While assisting in this way might sometimes involve obeying the law, it might well require disobedience instead; the empirical circumstances and the requirements for effective assistance (dictated by those circumstances) would determine the specific actions required by the duty of justice. **In any event, the duty of justice would imply no uniform duty to obey domestic law.** Indeed, even in reasonably just societies, strict obedience to law may not be required by Rawls' natural duty, perhaps contrary to initial appearances. Rawls allows that while in near-just states the duty generally requires obedience even to particular unjust laws, obedience may not be required where the law's injustice is severely burdensome or where legal injustices fall disproportionately on one group of people (e.g., on permanent minorities).⁴²

Let us focus for a moment on the second requirement of Rawls' duty of justice. Presumably, given that the duty applies to us independent of our "institutional relationships," the second part of the natural duty of justice requires that we assist in establishing just

Rawls' response would be the plausible contention that the second part of the duty will suffice to do any required work here – that is, the second part of the duty (requiring us to assist in establishing just institutions where they don't exist) will require us to comply with law even in unjust states, but only where doing so assists in making unjust institutions more just. Obeying the laws forbidding murder and rape might plausibly be expected regularly to do this (since murder and rape seldom advance the cause of justice, and since at least often anarchy must be avoided if we are to have any reasonable prospects of bringing into existence just institutions). But more general compliance in an unjust state would seem likely only to cause any movement toward justice to stagnate, so that a duty to promote justice could not include the kind of requirement of relatively strict compliance with unjust institutions that the first part of Rawls' duty specifies in the case of reasonably just ones. Interestingly, Kant apparently disagreed with Rawls on this, advocating as he did strict compliance even with the laws of tyrannical governments (*Political Writings*, 74–5, 83–7, 143–4).

42 Rawls, *A Theory of Justice*, 355. I will not discuss further the details of Rawls' account of the justifications for civil disobedience or conscientious refusal (see *ibid.*, 350–91).

institutions not only for our own society, but for other societies as well.⁴³ While it may often be easier or more efficient to help in this effort close to home, the duty binds us to all persons (in their distinct societies) as moral equals. In this respect, then, the duty of justice has a structure similar to our normal understanding of moral duties of charity (or “mutual assistance”), where the needs of persons at a distance still fall fully within the scope of needs to which the duty requires us to attend.⁴⁴ Charity may begin at home, but it does not end there. It is possible, then, that the task of assisting in the establishment of just institutions may require us to devote our efforts to the needs of societies distinct from our own, especially where our own institutions are more nearly just than theirs (so that ours need less of our assistance than theirs in the push toward justice). And it seems possible as well that assisting other societies in this task might sometimes require of many of us actions that in fact involve disobedience to domestic law (for instance, where domestic law forbids private citizens to travel to or to interact in various ways with certain other nations, nations that might need significant assistance in establishing just institutions). This possibility would appear to bring the demands of the first part of the natural duty, which requires compliance with domestic law in near-just societies, into possible conflict with those of the second part.

How such a possible conflict between the two parts of the natural duty of justice is to be resolved Rawls does not appear to say.⁴⁵ Perhaps a legal system counts as unjust if it includes rules

43 Allen Buchanan apparently disagrees, taking Rawls’ version of the natural duty to be less “robust” than his own (in part) because Rawls’ duty requires support only for institutions that *apply* to one (Buchanan, *Justice, Legitimacy, and Self-Determination*, 87). As far as I can see, however, only the first part of Rawls’ duty is ever qualified by him in this way.

44 In his diagram of “a full conception of right” (*A Theory of Justice*, 109), Rawls lists together in the category of “positive natural duties” the duties to “uphold justice,” provide “mutual aid,” and show “mutual respect.”

45 Rawls’ only apparent consideration of a conflict generated by the natural duty of justice concerns what he calls the conflict between “the duty to comply with laws enacted by a legislative majority” and “the right to defend one’s liberties and the duty to oppose injustice” (*ibid.*, 363). This sounds as if it should cover

that forbid morally mandated assistance to unjust or less just societies (though it is difficult, for me at least, to see why such laws could not perfectly well flow from a domestic basic structure that would count for Rawls as reasonably just). Perhaps we are to assume that such laws would necessarily count for Rawls as imposing severe burdens of injustice on those compelled to refrain from assisting other unjust or less just societies. But that suggestion, too, seems not at all plausible, leaving the Rawlsian position on such conflicts obscure. On its face, then, the natural duty of justice (as described by Rawls) seems vulnerable to charges of internal inconsistency.

And there is a further tension between the two parts of this Rawlsian natural duty. The first part of the duty requires of us a particular set of acts, namely, those acts (and forbearances) required by our reasonably just domestic legal systems (along with whatever acts constitute our share of supporting just domestic legal and political institutions). But the second part of the natural duty of justice – the part requiring that we assist in creating just institutional structures – is most naturally read not as requiring particular acts, but as setting an end to promote (or specifying a moral property the occurrence of which to maximize).⁴⁶ Assisting in the establishment of just institutions would then be understood simply as promoting the good of justice in the world, either by trying to maximize the amount of justice in the world or by keeping the ideal of a just world in mind in acting, so that one regularly acts to advance that ideal. Promoting justice in these ways, of course, might or might not require uniform

the case I have in mind (where the duty to assist in promoting justice requires us to violate domestic law). But the kind of justification for disobedience that Rawls has in mind – roughly, that disobedience can sometimes actually help to promote justice, as justice is understood by the very majority that made the unjust law – seems inapplicable to the conflict between the duty to obey domestic law and the duty to promote foreign justice.

- 46 Suggesting either a teleological/consequentialist duty – i.e., to maximize the amount of justice in the world – or an imperfect deontological duty, with the end of justice for all being the ideal to be kept in view in our choice of actions. Given the Kantian character of Rawls' theory, the latter interpretation is, of course, the more natural one.

performance of right-respecting acts – since it is at least possible that justice might sometimes be best promoted by performing unjust acts (such as harming those who are likely to innocently impede progress toward a more just state).

Now promoting or doing justice in this sense certainly might at first seem to require that we uniformly or regularly obey our countries' laws, for it is certainly possible that doing so is the best way to advance the cause of justice (where justice is understood as an obligatory end). So one might suppose that the first part of the duty – the duty of domestic compliance – could actually just be derived from the second part. Exactly what a duty to promote justice would require, though, seems to involve at least reasonably sophisticated empirical judgments about the likely consequences of various courses of action for the advancement of justice in the world. And it seems highly improbable that our conclusions would be the same for all citizens of all reasonably just states, given their very different capacities and circumstances. If that is true, however, it is hard to see how a *general* moral duty to obey the law – that is, a duty binding all or most persons in reasonably just political societies – could be plausibly derived from a natural duty to promote the end of justice. Making this even harder to understand is the simple fact that *local* obedience to law is not at all obviously even normally the best way for persons to promote the *global* end of justice.

Thinking of the second part of the duty as a duty to promote justice in this way suggests that the problems facing the Rawlsian derivation of a duty to obey the law from the natural duty of justice are even more general than my arguments thus far have suggested. For it is not at all clear why there should *be* two parts of a properly characterized natural duty of justice, two parts to come into possible conflict or stand in tension in the ways outlined previously. We can understand the motivating idea for the duty easily enough. Justice is an important moral good, "the first virtue of social institutions," to use Rawls' phrase.⁴⁷ A coercive institutional structure committed to securing persons' moral rights – or

47 Rawls, *A Theory of Justice*, 3.

multiple such structures in multiple autonomous political societies – is morally imperative; all persons, in consequence, have a duty to help bring about and uphold just institutions. But why then should those institutions that “apply to us” have some special moral claim on our attention? Justice is equally important everywhere. Why should we be thought to be specially bound to obey (and “do our share in”) the domestic institutions that apply to us, as the first part of Rawls’ duty asserts? What exactly privileges domestic institutions in this way? We can promote the cause of justice, advance the goal of a stable structure of just coercive institutions for all persons, without giving priority to the demands of domestic law. Perhaps promoting justice will regularly require conformity with domestic law, but perhaps it will not. Why is our natural duty not simply the general duty to advance the cause of justice as effectively as we can, by whatever means are most effective (at least where these effective means do not involve imposing on ourselves unreasonable costs)?

It appears, then, that in his formulation of the natural duty of justice Rawls is *presuming* the very duty to obey domestic law that is supposed to be *derived from* (or implied by) that logically prior duty of justice. There are, of course, many ways in which institutions can be said to apply to us. They can apply to us in the very minimal sense of merely naming us as falling within their scope or jurisdiction, as the NAACP might be said to apply to all persons of color. Or institutions could apply to us more strongly by both naming us and being accepted by us as applying to us, as is arguably true of most of our national legal and political institutions (at least in stable, affluent societies). Perhaps such acceptance is sufficient to give such institutions moral authority over us, so that we are obligated to act as they require us to act and to otherwise do our share in supporting them – though in my view this is true only if the acceptance in question amounts to a morally significant personal consent. But Rawls cannot be trying to ground in this way our duty to comply with just institutions that apply to us in our acceptance or consent. That would be to derive the duty to obey not from a natural duty, which requires no voluntary act (like acceptance or consent) to bind us, but rather

from a straightforwardly voluntaristic principle of *obligation* (such as Rawls' principles of fairness and fidelity⁴⁸). And we know that Rawls in fact *rejects* claims that a general obligation to obey the law can be derived from principles of obligation,⁴⁹ quite apart from the fact that an implicit appeal to a voluntaristic principle of obligation would undermine Rawls' attempt to derive our duty to obey the law entirely from our natural duties.

For Rawls' argument to succeed, he must be able to identify something about the existence and application to us of our just domestic institutions that gives them privileged moral authority over us *without* (explicitly or implicitly) appealing to the special ways in which we might accept, consent to, or benefit from our domestic just institutions. And on the face of things, at least, it is hard to see what that something might be. It is certainly true that (by and large) American laws apply to Americans and French laws apply to the French. After all, American and French lawmakers specify or intend that (most of) their laws should be enforced only against their own citizens (qualified to cover resident aliens, visitors, diplomats, and so on). But it surely cannot be true that this legislative specification or intent is what grounds the relevant moral duties of obedience. For nobody, I assume, would seriously argue that if American lawmakers did in fact specify or intend that French citizens (in France) should pay American taxes, abide by American federal law, and so on, that the French would thereby have the same moral duty to obey as do resident American citizens.

There is no doubt, as Rawls contends, a profound difference "between those institutions . . . which must inevitably apply to us since we are born into them and they regulate the full scope of our activity, and those that apply to us because we have freely done certain things as a rational way of advancing our ends."⁵⁰ But why is the difference not that the latter institutions, unlike the former, have a *special* claim on our obedience and support

48 See again Rawls' diagram of his conception of right (*ibid.*, 109).

49 *Ibid.*, 113–16.

50 *Ibid.*, 343–4.

(based in the voluntary acts by which we specially commit ourselves to them over other, possibly equally worthy, institutions)? Institutions to which we are simply *subject* by birth have only the coincidence of proximity to claim for themselves (beyond the brute, and I will suppose for now morally irrelevant, claim to superior power, to a superior ability to coerce and control – which advantage, it is worth remembering, domestic institutions need not always even possess). Why are the needs of domestic institutions for compliance, support, and assistance not on a moral par with the similar needs of foreign institutions, so that it is our effectiveness in advancing the cause of justice, not the proximity of our object institutions, that determines the nature of their moral claims on us (just as, I suppose, it is our ability to alleviate need and suffering, not the proximity of the needy, that determines what is required of us by our natural duty of charity or mutual assistance)? In short, why should there be a first part – a part that details our special moral relationship with domestic just institutions – of Rawls' natural duty of justice at all?

It is clear that in the first part of the natural duty of justice Rawls has in mind some *territorial* notion of application. Institutional rules generally have some explicit or implicit territorial limits of application. Indeed, many institutional rules really only make sense when understood in territorial terms (e.g., speeding laws prohibit speeding only on certain roadways; speeding in Europe does not violate American speeding laws). But to simply *assume* that anyone is bound to obey who is merely in the territory intended to be covered by a just institutional rule seems to simply beg the relevant questions: namely, why is legislative intent thought to be morally authoritative, or why are states' claims to territory sufficient to bind to obedience those who happen to be within the claimed territory? Most important, it is not at all clear how an institution's being *just* (or reasonably so) helps us to see who exactly is bound by its rules without appealing as well (and illicitly, for the purposes of Rawls' argument) to *other* morally interesting facts about people (their acceptance or consent, the institutional benefits they've enjoyed, etc.), facts that seem to provide *independent* grounds for asserting a duty to comply.

Of course, if our own legal and political institutions are just (or can be made just), and if we have a duty to promote justice, then it seems that we ought to support and assist our own just institutions as one way of promoting justice more generally. Indeed, as noted earlier, supporting our own institutions may well regularly be the most efficient way to promote justice, being less costly and less difficult to do so at home than abroad (though, we should add, it is not at all clear that we fail to discharge our natural duties simply by failing to adopt the most efficient means to accomplish the required moral task⁵¹). We can imagine, for instance, a world of multiple near-just political societies “dividing up” the universal duty to promote justice, with each country’s population attending specially to its own just institutions – not because their own institutions are specially entitled to such attention, but simply because justice will be most effectively promoted by such an arrangement.⁵² But notice that this happy picture assumes that populations in other countries will in fact do their duty and that their doing their duty will advance in equal measures their own institutions’ march toward justice. What if others do not do their duty? Or what if, even after their populations do their best, some institutional structures simply need more assistance in becoming and remaining just than do others? **The natural duty to promote justice would seem then – or, rather, now, since this is in fact the condition of the real world – to require not morally myopic continuing support exclusively for our domestic institutions, but rather that our low-cost assistance in the promotion of justice be carefully budgeted and targeted so as to be most effective in promoting justice.** And that would seem likely to at least often involve directing our attention, support, and assistance not to our own happy near-just institutions, but to less happy societies.

51 I do not fail to discharge my natural duty to refrain from lying if I (inefficiently) refrain from communication with others altogether; and if I have a duty to keep my fair share of the world’s needy at some modest level of well-being, I do not fail in my duty by using unnecessarily costly ways of helping (provided that I aid the right number of persons in the right measure).

52 So the assigned duties would be viewed “merely as an administrative device for discharging our general duties more efficiently” (Robert Goodin, “What Is So Special About Our Fellow Countrymen?”, *Ethics* 98 [1988], 685).

Particularity and the Effects of Noncompliance

The problem for Natural Duty accounts (of the duty to obey the law) to which I point here is (part of) what I have elsewhere called the “particularity problem”.⁵³ A general moral duty to promote justice – or any other impartial value – cannot bind one specially to support or comply with one particular state or society (such as “my own”).⁵⁴ And the moral duty to obey the law is precisely such a particularized moral bond. This makes the derivation of a duty to obey domestic law from any natural duty desperately problematic from the start. Natural duties, remember, bind those who have them not because of anything those persons have done, or because of the special positions those persons occupy, but because of the moral character of the required acts. Happiness (utility) must be promoted because happiness is good. Murder must be refrained from because of the moral significance of murder. This means that natural moral duties will bind me as strongly with respect to persons or institutions that are not close to me (or my own) as they will with respect to those that are. **Murdering Russians is as wrong as murdering Americans.** Just Swedish political institutions merit support as much as, and for the same reason as do, just political institutions in the United Kingdom. But because this is true, it is difficult to see how a natural duty could ever bind citizens specially to their own particular laws or domestic institutions. It is easy to see why Socrates should promote justice. **It is much harder to see why Socrates should specially support Athens or regard himself as specially bound by Athenian law if it really is after all the importance of *justice* that explains his duty.**

Laws or governments or states being *ours*, of course, routinely have consequences that might well seem to explain our special

53 *Moral Principles and Political Obligations*, 31–5, 155–6.

54 This, of course, is precisely the point of Godwin’s famous insistence that “that life ought to be preferred which will be the most conducive to the general good.” In saving Fenelon rather than yourself, your brother, or your father, you save what is “more valuable” in terms of the impartial good at issue (in this case, utility). “What magic is there in the pronoun ‘my’, that should justify us in overturning the decisions of impartial truth?” (Godwin, *Enquiry Concerning Political Justice*, 169–70 [II.ii.]).

moral bonds to them. We may benefit specially from them, occupy roles in them, be relied upon specially by them in ways that are not true of other laws or governments or states. But these kinds of consequences all transparently involve appeal to transactional or associative facts about citizens and their domestic institutions, an appeal that a Natural Duty theory of the duty to obey cannot legitimately make. A natural moral duty might, of course, give us a quite contingent moral reason to specially obey and do our part in our domestic legal-political scheme if our own scheme happened to be the only scheme we could support while successfully advancing the relevant impartial values; but this would not only make our particularized moral bonds depend on wild coincidences, it would make those bonds vary in strength and direction as international political and legal affairs changed. It would surely barely count at all as having explained our special moral duty to obey domestic law if we had to rely in our account on facts so contingent and changeable.

But perhaps we can explain our duty to obey domestic law *without* assuming that this moral duty has to be somehow special or exclusive. We would, admittedly, then have to give up our association of the duty to obey with ideas like patriotism, allegiance, and loyalty. But why could we not just view our moral duty to obey domestic law as a nonprivileged part of the requirement of a more general moral duty to promote some impartial value? After all, one can consistently satisfy the legal demands of more than one state at once, as holders of multiple citizenship routinely do. One can pay required taxes to more than one state, obey the laws of more than one state, even serve in the military of more than one state, and so on. What we cannot do, however, is to satisfy all of the *possible* reasonable legal requirements that might be imposed by more than one state simultaneously, or discharge our basic legal duties where these are simply more restrictive than we might like them to be. No natural duty could consistently bind us to “serve (in the military, on a jury) when called” in more than one state. We cannot honestly accept an obligation to defend more than one state “against all enemies, foreign or domestic.” **Nor can we both obey legal commands from our government to refrain from dealing**

with, say, Iraq, and still satisfy the legal demands made by Iraq. It is in fact only political accommodation (or extraordinarily good fortune) that allows holders of dual citizenship to satisfy all of the legal demands of multiple states. We must understand the duty to obey the law as a special or particularized duty, and Natural Duty theories seem unable to generate a duty to obey so understood.

That, then, is the particularity problem faced by all Natural Duty theories of the duty to obey the law. But we should notice, further, that even if particularity were *not* a problem, a natural duty to promote justice or to support just institutions at home *still* would not appear to yield anything much like a uniform duty to obey the law even in a reasonably just society. For just institutions may sometimes be supported equally well or better by *noncompliance than by compliance*. Rawls recognizes this in the case of unjust laws within basically just institutional structures, where disobedience may sometimes help to make near-just institutions more just. This is an important aspect of the Rawlsian justification for certain kinds of civil disobedience. But I would prefer to emphasize in this context the vastly more numerous and perfectly commonplace cases in which obedience or disobedience of domestic law is simply not likely to have *any* interesting effect, good or ill, on the stability, efficiency, or justice of a near-just institutional structure.⁵⁵ Typically, I think, it simply makes no difference to the cause of justice whether we obey or disobey the law. While legal disobedience may sometimes violate others' rights – and so constitute a breach of our narrower duty not to personally wrong others – even in those cases our disobedience seems routinely no more likely to affect the movement toward justice of our political and legal institutions than would obedience. Our individual actions simply have no appreciable effect at all on such matters. To be sure, were most people to similarly disobey, our institutions' ability to do justice would be impaired. But whether or not our duty to promote justice implies a duty for us to obey domestic law is presumably not a question whose answer

55 See Soper, *The Ethics of Deference*, 164.

turns on hypothetical conduct by others (particularly when that conduct is as unlikely as general legal disobedience).⁵⁶ Insofar as the duty is a duty to actually promote some end, whether or not it requires legal obedience must turn rather on the likely actual effects of our actions. And the actual effects of these actions, in typical contexts of general obedience, are normally negligible. One more act of legal disobedience or obedience simply makes no difference. Were I sufficiently influential that my obedient or disobedient actions were likely to be widely imitated, that might affect the argument. But I regret to report that I am not influential in that way. Nor, I suspect, are you.

The near-just (or, at least, the most just) legal and political structures with which most of us are familiar tolerate extraordinary amounts of noncompliance without obvious ill effects. Nor would small increments of increased obedience have obvious beneficial effects on those structures. Individuals can, of course, sometimes help to make their institutional structures better: perhaps by political activism of various sorts, by public support for those features of them that most make them just, by public protest of their flaws, and so on. And individuals can surely also help to undermine them, to slow institutional progress toward justice: say, by working to corrupt institutional officials, by organizing rebellion or widespread unjust disobedience, by publicly supporting their worst features, and so on. But normally, individual acts of legal compliance or noncompliance simply have no interesting role in this process at all. A single person's obedience of law would typically not make the system any better than would her disobedience. It is in the end unclear, then, just how the argument from a natural duty of justice to a duty to obey the law is supposed to proceed. Not only does a duty of justice seem ill equipped to tie us specially to our own local legal and political institutions in the required way. It also appears to be the wrong kind of duty to naturally yield a duty of simple legal compliance at all. In short, while there may well be a natural duty of justice, and one that

56 Here the same points are relevant that were raised earlier in our discussion of consequentialist generalization (in the section "Consequentialism").

can command a reasonable share of our moral attention, it seems not to be the place to look for the ground of our duty to obey domestic law.

Particularity and Salience

Jeremy Waldron has in a recent paper⁵⁷ attempted to defend Natural Duty theories of the duty to obey against just the kinds of criticisms I have made thus far, as has Christopher Wellman (in some of his papers⁵⁸ and, more directly, in the first portion of this book). Their accounts will be the subjects of the current section and the next, respectively. Waldron specifically mentions two objections to Natural Duty accounts of the duty to obey (and, more specifically, to Rawls' account) that he intends to answer: what he calls "the 'special allegiance' objection" and "the 'application' objection" (273–5). The special allegiance objection appears to be just what I have been calling the particularity problem that faces Natural Duty theories. The application objection is also one that is made earlier in my discussion of Rawls. If the attempted answer to the particularity problem is that only my own country's legal and political institutions apply to me (and that this application is what particularizes my duties to my own country), the move fails: There is no notion of application to appeal to in the answer that is not either straightforwardly question-begging or implicitly transactional (or associative⁵⁹) in nature. Either way, a genuine and successful Natural Duty theory of the duty to obey the law cannot be completed.

57 "Special Ties and Natural Duties," in Edmundson (ed.), *The Duty to Obey the Law*. Page references for the paper in this section are given in parentheses in the text.

58 See especially "Liberalism, Political Legitimacy, and Samaritanism," *Philosophy & Public Affairs* 25:3 (Summer 1996), and "Toward a Liberal Theory of Political Obligation," *Ethics* 111:4 (July 2001).

59 Waldron does not in fact mention Associative accounts, instead dividing "philosophical accounts of what we owe the state" into just "two classes: theories of acquired obligation [by which he appears to mean Transactional theories] and theories of natural duty" (Waldron, "Special Ties and Natural Duties," 217).

Waldron begins his response to these objections by reminding us that we need to accept the idea of a natural duty of justice (of a Kantian–Rawlsian sort⁶⁰) in order to make sense of certain firm intuitions about what we owe not just to our own countries, but to countries abroad. Most of us would agree that we have a moral duty to obey the laws of other countries when we are in them, as well as a duty not to undermine the just institutions of other countries (regardless of where we are). While a Transactional account can easily explain the first of these duties (in terms of the consent given on entering another country, say), only a natural duty of justice can explain the second. So we're obliged, if we take these intuitions seriously, to accept a natural duty not to undermine just institutions anywhere, including, of course, those in our own countries (275–8).⁶¹

Supposing we accept such a duty, however, how are we to defend it (as yielding a duty to obey domestic law) in the face of the two objections to such accounts? Waldron contends that some moral principles are “range-limited” rather than universally applicable, just as the legal principles of each particular country are normally limited in application to persons within that country's territories. We obviously need to justify such range limitation, since most moral principles apply to all persons equally. Waldron's justification appeals to Kant's political philosophy (some of the rudiments of which were summarized earlier). People who live side by side without just political and legal institutions over them

60 Waldron's version of the natural duty of justice appears to be weaker than (or is at least more explicit on the point than) Rawls' version in requiring that we support and comply with only those just institutions that are themselves required as a matter of justice (rather than binding us to every internally just institution that applies to us).

61 Strictly speaking, Waldron's claims here seem to me false. We could certainly explain the duty not to undermine the just institutions of other countries not in terms of a duty of *justice*, but simply in terms of a duty not to gratuitously harm others' interests – namely, the interests of those who live under and rely on the institutions. The justice of the institutions would not be required to explain the duty to refrain from sabotage (though the injustice of institutions might negate the duty or establish competing moral reasons for interference). However, I will not press this point here, since I in fact agree with Waldron that we have a natural duty not to undermine just institutions (anywhere).

are a constant threat to each other, even when they are trying to behave justly. So each person has a duty to establish and support just institutions in order to end this threat. But this duty is owed principally to those in one's immediate vicinity, since they are the ones directly threatened by one's conduct (280–1). Valid principles of justice, then, can be range-limited, imposing moral duties on those adjacent to one another that are not owed to everyone else.⁶²

To administer such a range-limited principle of justice, we will need an institutional structure to deal with the claims of those grouped in some area, and this institution will have to enforce justice and resist attempts by others to compete with it in doing this task (282–3). The institution is entitled to the compliance and support of those with whose claims it deals if it is just, if it is capable of enforcing justice in the territory it claims, and if it is “legitimate” – by which Waldron appears to mean simply that there's good reason to recognize *it* as the one that should administer justice in the territory, that it is the *salient* solution to the problem of injustice. Such legitimacy/salience could be established by the institution's superior strength or by the popular support (actual or hypothetical) it commands (285–91). Each person thus has a (range-limited) natural duty of justice to support and comply with one *particular* just institution (or set of institutions) whose rules apply to him. The special allegiance (particularity) and application objections are answered, Waldron maintains. The correct answer to the question “Can an

62 I take Waldron's (or Kant's) argument here to be an attempt at an analogue of the more familiar argument that “impartialist” or “neutralist” moral theories (such as Kant's or utilitarianism) can in fact justify the familiar “special” obligations of friends, family members, neighbors, etc. in response to the charge that impartial moral principles cannot justify singling out some persons for special treatment. If the impartial value of friendship and love can justify special duties to those who are emotionally close to us, we might try to say, then the impartial value of justice can justify special duties to those who are physically nearby. The crucial difference between these cases, however, is that friendship and love (etc.) are *logically* tied to those close to us; injustice (and the undermining of or the failure to support just practices), by contrast, is equally a wrong to those physically near or far.

organization simply *impose* itself on us, morally, in this way?" is "yes" (292).

In considering Waldron's case, we would do well to note first just how many apparent problems he attempts to finesse with his notion of salience/legitimacy. Precisely who counts as being a special threat to someone else – a problem we might think extremely awkward for the account (am I a special threat to you, bringing me under Waldron's range-limited moral principle of special duty, if I live ten miles away from you? Or fifty miles? On the other side of a river or mountain? If I once hiked past your property or was told of your existence by a friend? Or only if I interact with you regularly?) – is an issue that is mysteriously converted in Waldron's account into the question of whose claims the salient just institution decides to deal with. This would appear to correspond to any morally interesting notion of what it is to be a threat to another only by the merest coincidence. Similarly, a state's (legal system's) legitimate territory would be determined according to which of the just institutions that claims that territory (and its residents) is most likely to enforce justice effectively there. And that appears to simply ignore all of the historical considerations (such as residents' actual consent, procedural conventions, etc.) that most of us take to be central to legitimate territorial sovereignty.

Worse, however, we need to remember that Waldron is attempting to rehabilitate a Natural Duty theory that purports to explain our moral duties to obey and support our *existing* legal and political institutions (at least where these are reasonably just). But there is simply no sense in which the territories or persons controlled by existing just institutions were ever sorted according to Waldron's categories – that is, according to who was most a threat to whom, or according to which territory would be most effectively governed by which institutions. The actual histories of all states' jurisdictional claims are instead replete with violence, injustice, and arbitrariness. Why, then, should we suppose that simply because certain institutions *now* are the salient enforcers of justice in a territory (having achieved and solidified that position by past acts of violent seizure and suppression of competition),

such Kantian arguments (about threats and effective enforcement of justice) can justify special duties of obedience on all who are *currently* in that territory? We should suppose this, I think, only if we believe that historical facts are completely irrelevant to the legitimacy of present claims to authority and obedience. But most of us do not believe this. We believe that there is an enormous difference between the claims of an elected effective enforcer of justice and an equally effective (perhaps even equally popular) enforcer who takes power from an elected government by force. Such historical illegitimacy does not simply wear off over time. Further (as we saw earlier), actual governments have taken on many functions that have nothing obvious to do with the task of administering justice. So the scope of any authority they might wield, as this authority might be legitimated by Waldron's arguments, would appear to be far more limited than the authority actually claimed by modern states; and our duties to obey would seem to be correspondingly limited.

But suppose we set to one side such concerns about the history and nature of existing political and legal institutions, and about the lack of correspondence between their claims to obedience and the moral categories that justify such claims in the Kantian argument. Can Waldron's argument then justify (in Natural Duty terms) his claims of a special, particularized duty to obey? In my view, it cannot succeed even so qualified. Consider more carefully the central claim of the Kantian Natural Duty argument: that I wrong those around me (by threatening them with injustice) if I decline to authorize institutions to enforce justice among us (and thus refuse to undertake a moral duty to comply with such institutions).⁶³ First, of course, the idea that we are special threats to those who are near us – which is what allegedly particularizes (localizes) our general duties, binding us specially to domestic institutions – seems both inherently implausible and a bit dated. It is precisely with those near me that I am most likely

63 Notice that there is an apparent gap in the Kantian argument: namely, that between having a duty to authorize institutions of justice and having actually authorized such institutions. Presumably the Kantian will (must?) contend that those who are obligated to consent to X have a duty to act as their actual consent to X would obligate them to act.

to have established bonds of friendship or sociability, making me less of a threat to them than to others. And it is precisely with those near me that I am most likely to have frequent and ongoing interactions, making aggression against any of their number irrational, even should I have nothing but purely self-regarding motivations (that is, the rational strategy for individuals in the ongoing “Prisoner’s Dilemma” of social life will usually be social cooperation – because that dilemma is iterated and without an obvious endpoint rather than being a “single-play” dilemma). Further, of course, I can as easily mail letter bombs or anthrax to someone in Asia as I can to those nearby. And surely other states or their evil (e.g., terrorist) residents constitute greater threats to us than do harmless local nonparticipants (arguing, perhaps, precisely *against* institutions establishing purely local sovereignty and control, just as do concerns about a just distribution of resources across the world’s population).

Vastly more important (and more surprising, given the argument’s distinguished history), however, is the more general implausibility of the claim that every person wrongfully threatens others (near or distant) wherever they live together without mutual commitment to institutions for enforcing justice. Being a threat to others in a way that wrongs them is an objective notion. We do not wrong others simply by virtue of their subjective *feeling* of being threatened by us (which is, perhaps, the source of the mistake). I can, conceptually, feel threatened by anything (say, by the robin on my lawn), provided only that it appears dangerous to me. But the dangerous-looking man who passes me in the dark alley surely does me no moral wrong simply because he is the object of my fear. He must actually be likely (in a special way) to harm me before he could possibly be accused of wronging me.

So how, exactly, do those who refuse to authorize institutions to settle their claims constitute wrongful threats to others? Even in a pure, apolitical state of nature, I think, it would often be true that particular persons (those, say, who were nonviolent, sociable, or squeamish) simply could *not* be said to be threats to others. That others might nonetheless feel threatened by them is as irrelevant to the Kantian argument as my fear in the dark alley

is to ascriptions of wrongdoing there. (And, in any event, those others might certainly have good grounds for believing some persons not to be threats at all.) But we do not live in an apolitical state of nature. And it is even more implausible here and now to contend that each person who refuses to authorize legal institutions is a wrongful threat to others. Those who refuse such authorization will be held as fully accountable under domestic law as will those who cheerfully accept their duty to obey. They will be as fully deterred as anyone can be deterred by the threat of legal punishment and social sanctions. In denying the law's authority over me, I surely am no more of a threat to others than is someone who accepts that authority while frequently ignoring his acknowledged moral duties. More generally, the combination of a person's peaceable character and the law's deterrent effects would seem to completely discredit the charge that that person was an objective (wrongful) threat to others, simply by virtue of insisting on her natural freedom in the face of the claims of domestic legal and political institutions.

But what of the possibility of moral disagreement (which is much emphasized by Kantians)? Those who accept the authority of a "neutral" umpire – that is, the salient domestic institutions for enforcing justice – might rightly fear that one who declines to accept it, even when she is conscientiously trying to do justice, would harm them because of her different conception of justice. This concern seems to me dramatically overstated by Kantians (and not only because law and society deter equally those subject to and those free of the law's authority). First, of course, if her different conception of justice is the *correct* conception, she cannot possibly *wrong* me by successfully acting on it (however little I may like what she does). But suppose her conception is not correct. Still, the worry here is supposed to be about the threat posed by genuinely conscientious conduct, not by the conduct of scoundrels and self-serving rationalizers. And there is in fact reasonably broad agreement among competing conceptions of justice on at least its core requirements (concerning nonaggression toward innocents); so the injuries she does me while acting conscientiously (supposing she is not kept in line by legal threats)

seem unlikely to be severe. But even were this not so, one who conscientiously strives to be just (according to a conception of justice different from my own) is both far more predictable than the unconscientious – and so far less of a threat to me – and far less of a hazard to me than are those who share my conception of justice, but act on it only sporadically, and those who are committed to no conception of justice at all. So the idea that one somehow becomes a *special* threat simply by denying the state's authority seems entirely indefensible.

But justice cannot be done, the Kantian will reply, without institutions to enforce people's rights. And the institutions that secure justice require support and compliance. This can all be granted (though I hope the text makes clear the ways in which I actually want to resist the former assertion⁶⁴). But even granting this much, it is still insufficient to establish that particular individuals have a duty to comply with their local (reasonably just) legal and political institutions when these already exist and enjoy general compliance (or even to establish a duty to help create such institutions where others are successfully engaging in doing so). My (or your) not being subject to the state's authority, not having a duty to obey it, cannot "undo" the justice the state secures (or will secure). So, if he is not to simply beg the question we are

64 Justice, for Kant (and, presumably, for Kantians), consists in each person's having that to which she has a legitimate moral claim – physical security and "external freedom," the resources necessary for pursuing a reasonable, just life, etc. Justice cannot (despite Kant's occasional lapses) consist of the *institutional* provision of these goods without the definition's simply begging the question at issue between Lockeans and Kantians. The Kantian claim must be rather the empirical claim that institutional enforcement is the only way to genuinely secure people's legitimate claims. People are not entitled to any more than having their rights respected. They are not entitled to having them respected in a certain way (e.g., happily, institutionally). If security requires an institutional framework, it certainly does not require this *naturally* or *necessarily*, but only contingently, in typical social contexts involving persons with limited powers and resources (that is, it is certainly possible to *imagine* how one might be made secure in a state of nature). So obedience to or creation of just institutions cannot be part of the very content of a natural duty of justice. That is one of the problems with the formulations of the natural duty in, e.g., Rawls and Buchanan.

exploring, the Kantian Natural Duty theorist must maintain that simply in consequence of remaining free of duty and subjection to the state and the law, I wrong those around me. Kant (and Waldron) try to maintain this by the wrongful threat argument we have just considered and rejected.

Another broadly Kantian possibility, of course, is to argue that the wrong in question is not one of being a threat to those around me, but rather of riding free on their submission and sacrifice. I treat others unfairly when I decline to do my part in the moral project of justice by declining to undertake a duty to obey the law (support the government, etc.). Why should I be left free of duty while I enjoy equally the fruits of others' efforts to maintain the institutions that secure justice for all? This, as we will see, is the move made by Wellman (at a similar point in his "samaritan" Natural Duty theory), and I will respond to that charge of unfairness in the next section.⁶⁵ For now, however, it is sufficient to see that the Kant–Waldron version of the Natural Duty argument depends crucially on its "wrongful threat premise: Those who refuse to sign up, denying the authority of the salient justice-enforcing institutions, wrong those around them by being threats to them. It is this premise that supports the claim that our natural duties

65 Buchanan also seems (at one point) to try to deal with the particularity problem in this way. But he also offers a more limited and different kind of solution. In democracies, he argues, failure to comply with domestic law (without "weighty reasons" for noncompliance) shows "a disregard for our fellow citizens," citizens who, participating in a system that treats all as equals, authorized the making of that law (Buchanan, *Justice, Legitimacy, and Self-Determination*, 255). And where institutional resources do not allow for democracy, mere salience (of the sort Waldron has in mind) will suffice to particularize our natural duty of justice (258). But Buchanan gives no real reasons why salience should be thought to have this morally particularizing effect (or, rather, he gives none that have not already been countered in the preceding text). And your legal noncompliance, even in a democracy, shows "disregard" (disrespect) for your fellow citizens only if you are legitimately subject to the egalitarian institutional process for making law in which they participated. I show no disrespect to persons who democratically pass rules for conduct in their neighborhood if I am not part of their neighborhood – that is, unless they actually have the authority to make rules that bind me. And it is that prior question of local authority – the question Buchanan wants to set aside (237–40) – that is crucially implicated in concerns about particularity.

can be particularized to imply a moral duty of domestic legal compliance. But that crucial premise of the argument is false.

Obedience and Rescue

Perhaps, though, the Kantian Natural Duty theorist could emphasize less the threat of positive harm to others posed by those who deny a duty of obedience, emphasizing instead the kind of negative harm done to others by those who refuse to pull together. I can fail to show obligatory respect to others not only by threatening to positively aggress against them. I can also be disrespectful by ignoring their danger or suffering (indeed, it is hard to imagine how I could show less respect for another than by allowing her to perish when I could prevent it with little or no effort or cost). And where saving another from great and unmerited harm requires my participation in a collective effort, the failure to participate would seem to constitute such wrongful disrespect. Perhaps, finally, our domestic legal and political institutions (at least when they are reasonably just) are properly characterized as coordinating precisely this kind of collective effort to rescue others from great and unmerited harm, so that we are all morally bound to do our parts in creating and supporting such institutions. The Kantian respect relevant to this case is not respect for legal officials or the respect shown others by refraining from aggression against them. It is the respect we owe to those in peril. This appears to be (roughly) the view of my coauthor, Christopher Wellman. His Natural Duty case for a moral duty to obey domestic law appeals not to the natural duty of justice, but rather to another of the natural duties mentioned by Rawls: namely, the natural duty of mutual aid.

Wellman accepts the necessity of the state (and its legal and political institutions) for the supply of crucial goods – most importantly, security and the neutral umpire's guarantee “that all those in spatial proximity play by the same rules” (Chapter 2). Further, he argues, the costs of having a state imposed upon us are considerably less than the benefits gained by (virtually) all of us, as we can see if we imagine having to choose between

accepting such subjection and having our state immediately dissolved. Thus, the coercion employed by the state to accomplish its ends is “both (1) necessary to save everyone in [the state’s] territory from the perils of a lawless environment and (2) is not an unreasonable imposition upon those coerced.” And since (the permissive part of) the principle of samaritanism establishes that we are morally permitted to rescue someone from serious peril where in doing so we do not unreasonably impose on others, the state (when reasonably just) employs its coercive powers permissibly. The state, as rescuer, enjoys legitimacy.⁶⁶

Wellman rightly acknowledges, however, that this argument cannot yet supply us with an account of the duty to obey the law. (State legitimacy, understood in this way as just the moral permissibility of ruling, does not correlate with duties of others to comply with state rule.) So Wellman adds to the argument the further premises of (a) the moral duty of rescue (the requiring part of the samaritan principle) and (b) fairness in the distribution of the burdens of samaritanism. We have a natural moral duty to perform easy rescues of those in serious peril when we are well positioned to do so, Wellman maintains. Since it is only our collective obedience to law that can rescue our fellow citizens from the perils of a lawless state, we have a (collective) duty to obey the law, legal obedience being an easy (i.e., low-cost) response to their plight. While no particular individual’s obedience is required to thus maintain the rule of law, still fairness requires that we each do our share of this “communal samaritan chore”; it is unfair that some enjoy “the good of discretion” while others do their parts and obey. Legal obedience is our fair share of the morally required task. This style of Natural Duty argument, Wellman believes, permits him to solve the particularity problem. Since the problem of lawlessness must be solved locally (i.e., by multiple territorial sovereigns), and since that solution is

66 Wellman seems not to favor the term “legitimate” in this essay, preferring to refer to the state’s being morally justified in using or morally permitted to use coercion. But such moral permissibility is, of course, one (weak) notion of state legitimacy; and Wellman uses the language of legitimacy to make the same point in the papers cited in Footnote 58.

unavailable if all in a territory use their discretion in deciding how to act, each person has a duty particularized to local compliance.

Some of these claims, it should be clear, are vulnerable to the arguments I've advanced in previous sections. One point at which Wellman's account seems distinctively and immediately vulnerable, however, is in his contention that legal obedience constitutes an appropriately easy or low-cost sort of rescue of our fellow citizens (it being allowed all around, apparently, that risky or costly rescues are morally optional, not obligatory).⁶⁷ Wellman admits that states "sometimes make considerable demands" on their citizens (an apparent high cost), but he believes that the substantial benefits of citizenship, subtracted from these possibly costly demands, permit us to view "the *net* costs as not unreasonable" (Chapter 2). This seems to me an odd form for Wellman's argument to take, for several reasons. First, of course, Wellman has allowed that "unusual valuers" may in fact not stand to benefit at all (on balance) from the state's stability, so presumably they must be excused from contributing to the collective rescue efforts (which, I suppose, might not much trouble Wellman, since such valuers are, after all, unusual).

Second, though, and far more telling, there seems to be a serious problem with the fashion in which Wellman computes the costs of obedience in this argument. Strictly speaking, of course, according to Wellman's computation, the costs involved are not just low (not just "not unreasonable") but must actually be nonexistent. The benefits of citizenship (including the enormous good of security) minus the costs of obedience are, for Wellman, a very positive sum. But the oddness of claiming that legal obedience has *no* cost simply highlights the relevant mistake. In classifying possible acts of rescue as easy or costly, we are normally

67 George Klosko has also criticized Wellman for his handling of this cost limitation ("Samaritanism and Political Obligation: A Response to Christopher Wellman's 'Liberal Theory of Political Obligation,'" *Ethics* 113:4 [July 2003]); but Klosko's critique, I think, strikes Wellman's case at the wrong place (worrying about his including in the computation of costs the benefits to rescuers themselves) and in the wrong way (complaining that this move guts Wellman's antipaternalism).

identifying the prospective costs from the perspective of a typical passerby. We are trying to see when it is reasonable to expect a normally self-interested person to act exclusively in the interest of others. So calling the police, unlocking an exit from a burning building, dropping a rope from the pier to a drowning woman, and so on might normally qualify as involving low costs (or risks). Rescuing people from the top floor of a fiercely burning building would normally not so qualify (nor would we dream of morally condemning a passerby for failing to race to such a rescue).

But individual citizens, doing their parts in the collective task of maintaining the rule of law, never confront a choice between bearing the costs of obedience or bearing the costs of a lawless state of nature. Individual disobedience (failure to rescue) virtually never has as a likely cost the collapse of the state. Instead, the prospective costs of obedience must be calculated keeping the *actual* costs of disobedience in mind; and the actual costs of individual disobedience (as Wellman concedes) are normally negligible. The relevant calculation for an *individual*, then, will often show the costs of legal obedience to be (in Wellman's word) "considerable." Perhaps one might claim that the cost to the *collective* (i.e., the society) of *collective* disobedience would be high enough to make *collective* obedience an act with low costs. But it is not collective acts or collective duties (however we might try to understand these) whose costs we should be assessing. Our (i.e., Wellman's) question is whether or not *individuals* have a duty to obey. And if individuals' obedience is to be required of them by their natural duty to perform easy rescues (or, in this case, to do their share of easy rescues), we must calculate easiness in terms of individuals' actual likely costs. The cost of a Hobbesian state of nature is simply irrelevant to that calculation.

I believe that the reason it might be hard to see such points – or even to follow the arguments in which they are made – is that there is a much deeper problem with Wellman's case. Even leaving aside concerns about the costs of doing our duty, Wellman seems in the end to be employing a version of a duty of rescue (or mutual aid) that is quite idiosyncratic and morally suspect. The duty actually used in his arguments concerning a duty to obey the law is not the same as the moral commonplace to which

Wellman appeals in his examples; and, indeed, the specific form of Wellman's duty seems to be inspired primarily by his argumentative needs, not by independent reasons to believe such a duty exists.

As our general (i.e., noncontractual, nonreparative), positive moral duties to others are normally understood (by those who accept at all the existence of such duties), these duties are of two sorts. There are, in the first place, general duties of charity (mutual assistance) or beneficence. Second, there are duties of rescue (or, if you prefer, samaritan duties or duties of mutual aid). Duties of charity are duties to alleviate suffering or need. They are generally understood as imperfect duties, owed to no particular rightholder (since all equally needy persons seem to have equally strong claims on available resources), but owed rather to persons generally (or owed to nobody, but just morally imperative). For those who defend such duties, the chief problem has always been how to limit their apparent demands. There are far too many desperately needy persons in the world for me to help them all; but limiting my responsibility to the needy persons I actually encounter seems far too hard on residents of India and far too easy on residents of American gated communities. So duties of charity have generally been thought to be limited in either the specific resources on which they have a claim – we must only give our “surplus” resources, those beyond what we need for moderately comfortable lives (as Locke held) – or by the idea that we owe only a fair share of the overall task of eliminating dire need – if we have done our part (even if others do not do theirs), our duty to give to the needy is (at least for the moment) discharged. Governmental institutions (if they did not themselves tend to inefficiency) might be useful for coordination of this moral task (e.g., for efficiently collecting and distributing charitable contributions); but we can plainly all do our duties of charity without such institutions, given the many private charitable agencies and the (admittedly sometimes daunting) possibility of personal charitable activity.

Duties of rescue, by contrast, are generally understood to be moral duties to deal with emergencies (rather than with ongoing problems like poverty). Where others find themselves facing

occasional serious harm, and where we can prevent this without great cost or risk, we are morally bound not to pass by. Indeed, those in peril may be thought to have a *right* to be rescued (i.e., the duty is often characterized as a perfect duty). But this right could not intelligibly be thought to be held against everyone. People separated from the emergency by lack of knowledge or by significant distance could not possibly be said to have breached some right of the imperiled, for they could do nothing to help. As a result, duties of rescue are normally said to bind us only in situations where we are specially positioned to accomplish an easy rescue (as in familiar face-to-face rescue cases). This implies, of course, that such duties cannot be thought to bind us to perform our fair share of required rescues. We cannot anticipate emergencies in a way that would permit the distribution of the relevant burdens. The moral burdens simply fall (perhaps quite unequally) on those who happen to be present at the emergencies (or have the knowledge that allows them to make themselves present). Notice that the very idea of institutions administering such a duty (by collection and distribution) makes no sense in this case. The most institutional rules can do is to enforce the duty (by punishing those who fail to assist the imperiled when they find themselves positioned to do so).

Wellman's samaritan duty seems to be a curious hybrid of these two kinds of positive duties. His examples are all of rescues, not of charity, suggesting (as the samaritan terminology implies) that he has in mind a duty of this second sort. And the face-to-face character of duties of rescue is plainly supposed to *localize* the moral duty in a way that will permit Wellman (in using this duty to explain our duty to obey the law) to deal with the particularity problem. But the actual content of the duty Wellman describes is more like the content of a duty of charity – that is, a fair share of a collective moral task. And the duty seems to be owed not to persons whose emergencies we actually confront, but to all persons in our political communities. Finally, the moral task to which Wellman thinks the duty is addressed is an ongoing problem (of providing security [and other public goods] for all), not the kind of local, occasional task to which duties of rescue seem to be addressed.

So Wellman's natural samaritan duty seems to be neither fish nor fowl. There is an obvious initial problem of motivating the assertion that such a duty actually exists, since it seems to lack the support of the commonsense moral intuitions that have led moral theorists to carefully distinguish the two kinds of positive duties. But worse, only if the duty is understood in one way – as a duty to address an impersonal, ongoing, nonoccasional moral problem – does it make sense to understand its content as a fair share of the overall task, while only if it is understood in a different way – as a duty to confront the emergencies actually directly presented to us – does it make sense to see the duty as localized and owed to our fellow citizens (rather than also to those abroad, who are equally in need of security, and so on). If the task in question is impersonally important, then it is important everywhere, and a contribution to it that I make anywhere, not just locally, is a good thing. If what matters is rather that I show special respect for those whose peril I actually confront (and can prevent), then fairness in the distribution of such a moral burden seems simply irrelevant. Further, of course, the emergency Wellman thinks we are duty-bound to prevent is not of the face-to-face sort; I actually confront or know about the situations of only a tiny percentage of my fellow citizens (my knowledge is, in fact, much more like the knowledge I have of ongoing material need in the world). And I can neither unilaterally prevent the relevant harm nor unilaterally permit it to occur. Lawlessness will neither result from nor be prevented by my individual conduct. In short, the emergency is not really properly described as an emergency at all.

Let me expand on these concerns by considering more carefully the use made by Wellman in his arguments of the ideas of fairness and fair shares.⁶⁸ It makes sense to speak of an individual owing a fair share of some task, in my view, only if that individual is morally bound to some group or collective entity and its

68 Buchanan, while rejecting the duty of rescue utilized by Wellman as too minimal a requirement (*Justice, Legitimacy, and Self-Determination*, 248n), appears to agree with Wellman in insisting that persons have a duty to bear their fair share of the collective local moral tasks (*ibid.*, 92–3). Thus the arguments advanced here against Wellman's use of the idea of fairness seem to apply equally (*mutatis mutandis*) to Buchanan's position.

enterprises. Others cannot demand of me that I do my part unless I actually *have* a part in some scheme or enterprise to which I am bound. When we speak of a person owing her fair share of the charity needed to relieve suffering, for instance, this is intelligible because we can think of all persons as naturally bound to humanity (naturally bound to show respect to all others, say) and think of the relief of suffering as a morally mandated task for that collectivity. But consider now Wellman's insistence that persons owe a fair share of the *local* task of saving local persons from the evils of lawlessness. Such an appeal to fairness here can be plausible only if either (a) all persons are naturally bound to their *local* political groups and the local tasks of those groups or (b) persons have *special* obligations of fairness (or fair play) to do their parts in their local political schemes. If (b) is true – that is, if our local polities really qualify as genuinely cooperative schemes and we as participants in them – then we can account for our duty to obey by straightforward appeal to a fairness theory of obligation. Not only would this make the account a member of the Transactional (reciprocation) family, not a Natural Duty account, we know that Wellman thinks such accounts fatally flawed⁶⁹ (and in this, as we have seen, I agree with him). That leaves possibility (a) to explain the role that fairness is playing in Wellman's argument. But holding (a) simply involves *presuming* the particularity of the relevant natural duty, which is precisely the point at issue. Wellman's argument is supposed to *conclude* with a particularized natural duty (and a consequent moral duty to obey). The argument cannot legitimately utilize (part of) its conclusion as an implicit and unargued premise.

So even if there were a genuine natural moral duty with the curious hybrid character of Wellman's samaritan duty, it could not be claimed to be a duty that bound persons to do their fair shares of a communal task without either just begging the question at issue or in the process supporting an alternative and radically different approach. We can, of course, try to preserve the Kantian "feel" of Wellman's Natural Duty argument by insisting that just

69 Wellman, "Toward a Liberal Theory of Political Obligation," 737–8.

as doing justice is humankind's collective moral task, so is rescuing humankind from the perils of a lawless state of nature. Each person must do her part in this collective task. But accepting that much (as we have seen) simply does not imply that our parts must have *local* obedience as their first and principal content. If we concentrate on humankind's ongoing need for security, Wellman has identified too small a group (our fellow citizens) as owed any duty aimed at that need. Those abroad share in that need, and I can contribute in a variety of ways to alleviating it nonlocally. If we concentrate instead on the morality of our face-to-face human interactions, then Wellman has identified too large a group as owed our moral attention. Only a few fellow citizens are directly affected by my conduct.

In short, the particularity problem is still not addressed. Indeed, Wellman's problems would not be solved even if we conceded a moral duty of rescue with the kind of content imagined by Wellman. Suppose that I *am* morally bound to do my fair share in preventing the *local* emergency of lawlessness (i.e., suppose possibility [a]). How might I go about this? To Wellman the answer is obvious: To prevent lawlessness, one obeys the law; obedience is the *only* way to do our part, since political coercion is the *only* solution to lawlessness. But the good my obedience is supposed to provide to others, remember, is the good of security. And it is not at all clear that such a good could not be provided for another by means other than legal obedience. Since the number of persons needing security is at worst three or four times greater than the number duty-bound to help provide it, my fair share of helping to provide security could be done by providing security for, say, myself and two or three others. And surely I could accomplish this in other ways than by obeying and thus providing a tiny increment of the security experienced by all (when all obey the law). Why could I not provide it more directly, by helping in more substantial ways to protect from violence by others those individuals I interact with locally (or even, more fancifully, by building a secure compound in which I invite some others to stay)? That few might choose such means of satisfying their duty (over the easier course of legal obedience) is irrelevant. What is relevant

is that a duty of rescue, even understood as Wellman understands it, cannot be said to directly imply a duty to obey the law.

Even more to the point, however, why can I not simply do the duty described by Wellman just by scrupulously refraining from violence (deception, etc.) toward others (and letting others see my intentions in this regard), while acknowledging no duty at all to *obey* the law? Since legal coercion and a sense of duty can assure my fellow citizens of my doing no more than this in any event, how can it be that my anarchist refusal to *obey* constitutes a failure to do my part in contributing to the security of all? We should not be seduced here by the Kantian argument into confusing means with ends. It is not legal *obedience* that is the moral goal in question, though the Kantian argument may sometimes be (question-beggingly) presented as if this is the case. Obedience is only a *means* to general enjoyment of the good of security. If one can do one's part in promoting that good *without* obeying the law, one has surely in so doing discharged any moral duty one might have. The facts (if they are facts) that states are necessary (to coerce the evil, the partial, and others who do not or cannot respect persons generally) and that states need a certain level of compliance to function effectively might *seem* to affect this conclusion. But they do not. Nor does the fact (if it is a fact) that everyone's using his discretion in genuinely trying to treat others well would cause chaos. What moral duty requires of us is a function of our actual circumstances. And if our actual circumstances permit us to effectively promote morally mandated ends (such as need satisfaction, security, or even local security) without adopting the usual (or locally prescribed) means of doing so, then we are plainly permitted to. Were our circumstances different – if, say, our state were in danger of collapse – then so might be the specific acts required by morality. As things stand, however, even were we to grant Wellman the kind of moral duty he describes, such a duty would not imply that typical persons in typical states are morally required to obey the law.